

MEMORANDA

OF

DECISIONS RENDERED DURING THE PERIOD EMBRACED IN THIS VOLUME

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DIANE
WELLS, Appellant.

Submitted September 3, 2014; decided September 3, 2014

Reported below, 36 Misc 3d 144(A), 2012 NY Slip Op 51544(U).

Motion for assignment of counsel granted and Seymour James, Jr., Esq., The Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

[17 NE3d 1134, 993 NYS2d 538]

In the Matter of JOSEPH D. CANDINO, JR., Appellant, v STAR-
POINT CENTRAL SCHOOL DISTRICT et al., Respondents.

Decided September 4, 2014

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered March 21, 2014. The Appellate Division, with two Justices dissenting, (1) reversed, on the law, an order of the Supreme Court, Erie County (John F. O'Donnell, J.), which had granted the application of claimant for leave to serve a late notice of claim, and (2) denied the application.

In February 2011, claimant, then a 16-year-old student at respondent West Seneca East Senior High School, participated in a high school wrestling tournament held at respondent Starpoint High School in Lockport. It is undisputed that one of the wrestlers at the tournament from respondent Iroquois Central High School had a highly contagious virus. In September 2012, approximately five months after he reached the age of majority and 19 months after the tournament, claimant sought leave to

serve a late notice of claim against respondents, alleging that he had contracted the virus from the infected wrestler and that respondents were negligent in, among other things, allowing the infected wrestler to participate in the tournament and in failing to take reasonable steps to avoid claimant's injury. The Appellate Division concluded that in seeking leave of the court to file a late notice of claim, claimant offered no excuse, reasonable or otherwise, for failing to serve a timely notice of claim. However, he did assert that respondents had actual knowledge of the facts underlying his claim because another student who allegedly contracted the virus from the same wrestler at the tournament had served a timely notice of claim against respondents Starpoint High School and Iroquois Central High School. Respondents asserted that, until claimant made the instant application, they had no knowledge that he had contracted the virus or otherwise had been injured at the tournament. The Appellate Division found that actual knowledge of the essential facts of a claim required knowledge of the injuries or damages claimed by a claimant, rather than mere notice of the underlying occurrence, and that claimant's proof in support of his application established, at most, that respondents had constructive knowledge of his claim. Consequently, even assuming that respondents suffered no prejudice from the delay and that the proposed claim against them did not patently lack merit, the court below abused its discretion in granting claimant's application for leave to serve a late notice of claim.

Matter of Candino v Starpoint Cent. Sch. Dist., 115 AD3d 1170, affirmed.

HEADNOTE

Schools — Notice of Claim — Late Notice

In an action against several school districts in which claimant alleged that he had contracted a highly contagious virus while participating in a high school wrestling tournament, an order of the Appellate Division, which reversed an order granting claimant's application for leave to serve a late notice of claim and denied the application, was affirmed, since the Appellate Division did not abuse its discretion in denying claimant's application to serve and file the late notice of claim (*see* General Municipal Law § 50-e [5]).

APPEARANCES OF COUNSEL

Lipsitz Green Scime Cambria LLP, Buffalo (*John A. Collins* of counsel), for appellant.

Baxter Smith & Shapiro, P.C., Buffalo (*Louis B. Dingeldey, Jr.*, of counsel), for Starpoint Central School District and others, respondents.

Sugarman Law Firm LLP, Syracuse (*Jenna W. Klucsik* of counsel), for Iroquois Central School District and others, respondents.

Webster Szanyi LLP, Buffalo (*Jeremy A. Colby* of counsel), for West Seneca Central School District and others, respondents.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs. The Appellate Division did not abuse its discretion in denying claimant's application to file and serve a late notice of claim (*see* General Municipal Law § 50-e [5]; *Williams v Nassau County Med. Ctr.*, 6 NY3d 531 [2006]).

Concur: Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT, RIVERA and ABDUS-SALAAM.

CHRISTOPHER BASILE, Appellant, v SHERRY WIGGS, Respondent.

Submitted June 16, 2014; decided September 4, 2014

Reported below, 117 AD3d 766.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of ELEANOR BRAUN, Respondent, v LACEY DECICCO, Appellant, et al., Respondent.

In the Matter of ROBIN HELLINGER, Respondent, v LACEY DECICCO, Appellant, et al., Respondent.

Submitted June 9, 2014; decided September 4, 2014

Reported below, *Matter of Braun v DeCicco*, 117 AD3d 1453.

Reported below, *Matter of Hellinger v DeCicco*, 117 AD3d 1455.

Motion, insofar as it seeks leave to appeal from those portions of the Appellate Division orders dismissing appellant's appeals insofar as taken from Family Court's orders concerning the best interests of the children, dismissed upon the ground that appellant is not a party aggrieved (*see* CPLR 5511); motion for leave to appeal otherwise denied.

CELLINO & BARNES, P.C., Respondent, v MARTIN, LISTER & ALVAREZ, PLLC, Appellant.

Submitted June 16, 2014; decided September 4, 2014

Reported below, 117 AD3d 1459.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of DARRELL CLINTON, Appellant, v BRIAN FISCHER, Commissioner, New York State Department of Corrections and Community Supervision, Respondent.

Submitted June 23, 2014; decided September 4, 2014

Reported below, 111 AD3d 1352.

Motion for reargument of motion for leave to appeal denied [*see* 22 NY3d 1192 (2014)].

In the Matter of the Claim of CHESTER J. COHEN, Respondent. JUST ENERGY MARKETING CORPORATION, Appellant; COMMISSIONER OF LABOR, Respondent. (And Seven Other Related Proceedings.)

Submitted June 23, 2014; decided September 4, 2014

Reported below, 117 AD3d 1112.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of LAURA DEGREGORIO, Doing Business as DGL & GRACE, Appellant, v NEW YORK STATE DEPARTMENT OF LABOR UNEMPLOYMENT INSURANCE DIVISION, Respondent.

Submitted June 16, 2014; decided September 4, 2014

Reported below, 99 AD3d 799.

Motion for leave to appeal etc. denied.

ALICE LARAINÉ DIMERY, Appellant, v ULSTER SAVINGS BANK, Respondent.

Submitted June 30, 2014; decided September 4, 2014

Reported below, 116 AD3d 731.

On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution. Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of ELG UTICA ALLOYS, INC., as Successor by Merger to UNIVERSAL WASTE, INC., Appellant, v DEPARTMENT OF ENVIRONMENTAL CONSERVATION et al., Respondents.

Submitted July 21, 2014; decided September 4, 2014

Reported below, 116 AD3d 1200.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for an order sealing appellant's corporate disclosure statement etc. denied.

HILLCREST HOMES, LLC, Appellant, v ALBION MOBILE HOMES, INC., Doing Business as HERITAGE ESTATES, et al., Respondents.

Submitted June 2, 2014; decided September 4, 2014

Reported below, 117 AD3d 1434.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

BARBARA KULIG HOCHMULLER, Appellant, v BELLWEST MANAGEMENT CORPORATION et al., Respondents.

Submitted June 16, 2014; decided September 4, 2014

Reported below, 111 AD3d 520.

Motion for reargument of motion for leave to appeal denied [see 23 NY3d 939 (2014)].

MARITA E. HYMAN, Appellant, v ARTHUR SCHWARTZ et al.,
Respondents, et al., Defendants.

Submitted June 23, 2014; decided September 4, 2014

Reported below, 114 AD3d 1110.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of VICTOR JORDAN, Appellant, v KATHERINE A. LEVINE, a Judge of the New York City Civil Court, Kings County, et al., Respondents.

Decided September 4, 2014

Reported below, 116 AD3d 1043.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of GLORIA P. MARGARY, Respondent, v GILBERT M. MARTINEZ, Appellant.

Submitted July 28, 2014; decided September 4, 2014

Reported below, 118 AD3d 1004.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for a stay and for poor person relief dismissed as academic.

In the Matter of REGINALD McFADDEN, Appellant, v ALBERT PRACK, as Director of Special Housing and Inmate Disciplinary Programs, Respondent.

Submitted June 16, 2014; decided September 4, 2014

Reported below, 120 AD3d 853.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution and is not an order of the type provided for in CPLR 5602 (a) (2). Motion for poor person relief dismissed as academic.

SETH MITCHELL, Appellant, v CANTOR FITZGERALD, L.P., et al.,
Respondents.

Submitted July 14, 2014; decided September 4, 2014

Reported below, 2014 NY Slip Op 73087(U).

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied. Motion for ancillary relief denied.

SETH MITCHELL, CFA, Appellant, v NEW YORK UNIVERSITY et al.,
Respondents.

Submitted July 14, 2014; decided September 4, 2014

Reported below, 2014 NY Slip Op 73364(U).

On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution. Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for ancillary relief denied.

167 LLC, Respondent, v NICHOLAE CALINESCU, Appellant.

Submitted June 16, 2014; decided September 4, 2014

Reported below, 2014 NY Slip Op 69972(U).

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain the motion for leave to appeal from the order of the Appellate Division entered in this proceeding commenced in Civil Court (*see* NY Const, art VI, § 3 [b] [7]; CPLR 5602 [a]).

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RA-
PHAEL GOLB, Appellant.

Submitted June 23, 2014; decided September 4, 2014

Reported below, 102 AD3d 601.

Motion for reargument denied [*see* 23 NY3d 455 (2014)].

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v PAMELA
HANSON, Appellant.

Submitted August 11, 2014; decided September 4, 2014

Reported below, 100 AD3d 771.

Motion for leave to file a supplemental brief granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days. Any responsive brief must be served and filed by September 29, 2014.

THE PRESERVE HOMEOWNERS' ASSOCIATION, INC., Acting by and
through its Board of Directors, Respondent, v SONNY Z.
ZHAN et al., Appellants.

Decided September 4, 2014

Reported below, 117 AD3d 1398.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of AKHTAR ALI SHEIKH, Appellant, v NEW YORK
CITY TAXI AND LIMOUSINE COMMISSION, Respondent.

Submitted June 23, 2014; decided September 4, 2014

Reported below, 111 AD3d 470.

Motion for reargument of motion for leave to appeal denied [*see* 23 NY3d 902 (2014)].

In the Matter of VICTOR SOWELL, Appellant, v BRIAN FISCHER, as
Commissioner of Corrections and Community Supervision,
Respondent.

Submitted June 2, 2014; decided September 4, 2014

Reported below, 116 AD3d 1308.

On the Court's own motion, appeal dismissed, without costs,
upon the ground that no substantial constitutional question is
directly involved. Motion for leave to appeal denied. Motion for
poor person relief dismissed as academic.

In the Matter of STATE OF NEW YORK, Respondent, v JOHN S.,
Appellant.

Submitted June 23, 2014; decided September 4, 2014

Reported below, 104 AD3d 511.

Motion for reargument denied [*see* 23 NY3d 326 (2014)].

MARIO VELARDO et al., Appellants, v LUDWIG TOMESCU et al.,
Respondents.

Submitted June 9, 2014; decided September 4, 2014

Reported below, 91 AD3d 859.

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the action within the meaning of the Constitution.

DEBRA WEISSMAN, Appellant, v RONALD WEISSMAN, M.D., et al.,
Respondents.

Submitted June 9, 2014; decided September 4, 2014

Reported below, 116 AD3d 848.

Motion to strike respondents' affidavit in opposition to the
motion for leave to appeal denied.

SUSAN ANGEL, Appellant, v CHRISTOPHER O'NEILL, Respondent.

Submitted June 23, 2014; decided September 11, 2014

Reported below, 114 AD3d 486.

Motion, insofar as it seeks leave to appeal from so much of the Appellate Division order as affirmed the order of Supreme Court denying appellant's motion for certain postjudgment relief in the matrimonial action, dismissed upon the ground that such portion of the order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

SUSAN ARANOFF, Respondent, v GERALD ARANOFF, Appellant.

Submitted July 14, 2014; decided September 11, 2014

Reported below, 2014 NY Slip Op 76248(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

KELLY COFFEY, Respondent, v CRP/EXTELL PARCEL I, L.P., et al., Appellants, et al., Defendant.

Submitted July 7, 2014; decided September 11, 2014

Reported below, 117 AD3d 585.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of JUDITH N. DOMAN, Deceased. CYNTHIA SCHNEIDER, as Successor Executor of JUDITH N. DOMAN, Deceased, Respondent; ALEXANDER DOMAN, Appellant; ALICE GREEN, as Executor of PAUL GREEN, Deceased, Respondent.

Submitted June 23, 2014; decided September 11, 2014

Reported below, 110 AD3d 1073.

Motion for reargument of motion for leave to appeal denied with \$100 costs and necessary reproduction disbursements [see 23 NY3d 903 (2014)].

EASTSIDE EXHIBITION CORP., Respondent, v 210 EAST 86TH STREET CORP., Appellant.

Submitted July 21, 2014; decided September 11, 2014

Reported below, 118 AD3d 474.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

Judge RIVERA taking no part.

VICTORIA FULLER, Appellant, v GARY ROBERT COLLINS, Respondent.

Submitted July 21, 2014; decided September 11, 2014

Reported below, 114 AD3d 827.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

JEFFREY GURAL et al., Appellants, v FRED DRASNER, Respondent.

Submitted June 30, 2014; decided September 11, 2014

Reported below, 114 AD3d 25.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

IDT CORP. et al., Respondents, v TYCO GROUP, S.A.R.L., et al., Appellants.

Submitted July 21, 2014; decided September 11, 2014

Reported below, 104 AD3d 170.

Motion for reargument denied [*see* 23 NY3d 497 (2014)].

Chief Judge LIPPMAN taking no part.

In the Matter of LILLIAN SS. and Another, Children Alleged to be Neglected. ULSTER COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; BRIAN SS., Appellant. (And Another Related Proceeding.)

Submitted July 14, 2014; decided September 11, 2014

Reported below, 118 AD3d 1079.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceedings within the meaning of the Constitution.

NELLA MANKO, Appellant, v LENOX HILL HOSPITAL, Respondent.

Submitted June 30, 2014; decided September 11, 2014

Reported below, 2013 NY Slip Op 80892(U), 2013 NY Slip Op 87642(U).

Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the action within the meaning of the Constitution.

In the Matter of NORMAN J. MERCER, Deceased. BNY MELLON, N.A., et al., Respondents; HOWARD MERCER et al., Appellants, et al., Respondent.

Submitted July 7, 2014; decided September 11, 2014

Reported below, 113 AD3d 772.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

MICHAEL NICHOLSON et al., Appellants, v INCORPORATED VILLAGE OF GARDEN CITY et al., Respondents.

Submitted June 30, 2014; decided September 11, 2014

Reported below, 112 AD3d 893.

Motion for reconsideration of this Court's May 8, 2014 dismissal order denied [*see* 23 NY3d 947 (2014)]. Motion for leave to appeal denied.

In the Matter of PAUL A., Respondent, v SHAUNDELL LL., Appellant. (And Three Other Related Proceedings.)

Submitted July 14, 2014; decided September 11, 2014

Reported below, 117 AD3d 1346.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order as affirmed the Family Court order adjudging appellant in contempt, dismissed upon the ground that such portion of the order does not finally determine that proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CHURCHILL ANDREWS, Appellant.

Submitted August 4, 2014; decided September 11, 2014

Reported below, 108 AD3d 729.

Motion for reargument denied [*see* 23 NY3d 605 (2014)].

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DAVON HARRIS, Appellant.

Submitted September 8, 2014; decided September 11, 2014

Reported below, 115 AD3d 872.

Motion for assignment of counsel granted and Lynn W.L. Fahey, Esq., Appellate Advocates, 111 John Street, 9th Floor, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v VINCENT IZZO, Appellant.

Submitted September 8, 2014; decided September 11, 2014

Reported below, 120 AD3d 860.

Motion for poor person relief granted.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v KENNETH NEALON, Respondent.

Submitted September 8, 2014; decided September 11, 2014

Reported below, 116 AD3d 886.

Motion for assignment of counsel granted and Lynn W.L. Fahy, Esq., Appellate Advocates, 111 John Street, 9th Floor, New York, NY 10038 assigned as counsel to the respondent on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CHRISTOPHER A. NICHOLSON, Also Known as JOHN DOE, Appellant.

Submitted September 2, 2014; decided September 11, 2014

Reported below, 118 AD3d 1423, 1428.

Motion for assignment of counsel granted and Mary P. Davison, Esq., care of Davison Law Office, PO Box 652, 61 North Main St., Suite C, Canandaigua, New York 14424 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v WILLIE L. WRAGG, Appellant.

Submitted September 2, 2014; decided September 11, 2014

Reported below, 115 AD3d 1281.

Motion for assignment of counsel granted and Shirley A. Gorman, Esq., PO Box 629, 19 Market St., Brockport, New York 14420 assigned as counsel to the appellant on the appeal herein.

36 EAST 57TH STREET LLC, Respondent, v SIMON FALIC, Appellant.

Submitted July 28, 2014; decided September 11, 2014

Reported below, 117 AD3d 434.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

Judge SMITH taking no part.

In the Matter of CURTIS WALKER, Appellant, v BRIAN FISCHER,
as Commissioner of Corrections and Community Supervi-
sion, Respondent.

Submitted July 28, 2014; decided September 11, 2014

Reported below, 113 AD3d 977.

Motion for reargument of motion for leave to appeal denied
[see 23 NY3d 905 (2014)].

[18 NE3d 739, 994 NYS2d 39]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RICHARD
PERALES, Appellant.

Decided September 16, 2014

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered November 28, 2012. The Appellate Division denied defendant's application for a writ of error coram nobis seeking leave to file a late notice of appeal from a judgment of the Supreme Court, Queens County (Darrell L. Gavrin, J.), which had convicted defendant, upon his plea of guilty, of attempted burglary in the second degree.

People v Perales, 100 AD3d 1025, reversed.

HEADNOTE

Crimes — Appeal — Leave to File Late Notice of Appeal

Defendant's application for a writ of error coram nobis seeking leave to file a late notice of appeal was granted where he made a challenge to his guilty plea at his sentencing proceeding and defense counsel failed to file a notice of appeal on defendant's behalf, despite letters from defendant inquiring as to the status of the appeal. Upon learning that a notice of appeal was never filed, defendant attempted to get permission to file a late notice of appeal but was procedurally barred from doing so because the one-year time period set by CPL 460.30 had passed. Defendant also made a pro se CPL article 440 motion which was denied on the ground that it was procedurally barred due to the fact that the issue was apparent from the record. Under those circumstances, defendant met his entitlement to the relief sought.

APPEARANCES OF COUNSEL

Richard Perales, appellant pro se.

Richard A. Brown, District Attorney, Kew Gardens (Edward D. Saslaw of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed and defendant's application for a writ of error coram nobis seeking leave to file a late notice of appeal granted and the case remitted to the Appellate Division for further proceedings in accordance with this memorandum.

At his sentencing proceeding, defendant made a challenge to his guilty plea. The court denied the challenge, noting to defense counsel that he could file an appeal on defendant's behalf. Defense counsel failed to do so, despite letters from defendant inquiring as to the status of the appeal. After not hearing from defense counsel on the issue, defendant made an inquiry with the Appellate Division and learned that a notice of appeal was never filed. Defendant, acting pro se, attempted to get permission to file a late notice of appeal but was procedurally barred from doing so because the one-year time period set by CPL 460.30 had passed (2008 NY Slip Op 89422[U] [2008]). He also made a pro se CPL article 440 motion, which was denied on the ground that it was procedurally barred due to the fact that the issue was apparent from the record.

Under these circumstances, defendant met his entitlement to the relief sought (*see People v Syville*, 15 NY3d 391 [2010]).

Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT, RIVERA and ABDUS-SALAAM concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed, defendant's coram nobis application granted and case remitted to the Appellate Division, Second Department, for further proceedings in accordance with the memorandum herein.

BASICNET S.P.A. et al., Respondents, v CFP SERVICES LTD., Doing Business as CFP TRADE SERVICES, Appellant, et al., Defendants.

Submitted July 28, 2014; decided September 16, 2014

Reported below, 120 AD3d 97.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

CATHEDRAL COURT ASSOC., L.P., et al., Appellants/Third-Party Plaintiffs-Appellants, v CATHEDRAL PROPERTIES CORP., Respondent. KEVIN WALSH, Third-Party Defendant-Respondent.

Submitted June 9, 2014; decided September 16, 2014

Reported below, 116 AD3d 649.

Motion, insofar as it seeks leave to appeal from that part of the Appellate Division order that affirmed so much of Supreme Court's order as dismissed the third-party complaint, denied; motion for leave to appeal otherwise dismissed upon the ground that the remainder of the Appellate Division order does not finally determine the action within the meaning of the Constitution.

In the Matter of CIJNTJE COX, Appellant, v BRIAN FISCHER, as Commissioner of Corrections and Community Supervision, Respondent.

Submitted July 14, 2014; decided September 16, 2014

Reported below, 114 AD3d 973; 2014 NY Slip Op 71037(U).

Motion, insofar as it seeks leave to appeal from the February 2014 Appellate Division order, dismissed as untimely (*see* CPLR 5513 [b]); motion, insofar as it seeks leave to appeal from the May 2014 Appellate Division order, dismissed upon the ground that such order does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of JAVIER C., a Person Alleged to be a Juvenile Delinquent, Appellant.

Decided September 16, 2014

Reported below, 116 AD3d 1039.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

JP MORGAN CHASE BANK, N.A., Respondent, v SMITH ELECTRICAL CONTRACTING, INC., Defendant, and STEPHEN SMITH, Appellant.

Submitted July 14, 2014; decided September 16, 2014

Reported below, 117 AD3d 909.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of DONETTE KINGSTON, Appellant, v NEW YORK CITY POLICE DEPARTMENT et al., Respondents.

Submitted July 21, 2014; decided September 16, 2014

Reported below, 2014 NY Slip Op 75277(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

KIZIA KNOWLES et al., Appellants, v SAINT JOSEPH'S MEDICAL CENTER et al., Respondents.

Submitted July 21, 2014; decided September 16, 2014

Reported below, 114 AD3d 730.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of ALVIN W. McLEAN, Appellant, v BRIAN FISCHER, as Commissioner of Corrections and Community Supervision, Respondent.

Decided September 16, 2014

Reported below, 118 AD3d 1240.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of ALVIN W. McLEAN, Appellant, v NEW YORK
STATE DEPARTMENT OF CORRECTIONS AND COMMUNITY SUPERVISION, Respondent.

Decided September 16, 2014

Appeal transferred, without costs, by the Court of Appeals, sua sponte, to the Appellate Division, Third Department, upon the ground that a direct appeal does not lie when questions other than the constitutional validity of a statutory provision are involved (*see* NY Const, art VI, §§ 3 [b] [2]; 5 [b]; CPLR 5601 [b] [2]).

In the Matter of the Estate of GINO ROLANDO MONACO, Deceased,
Appellant. EUGENE ALLEN MONACO, Respondent.

Decided September 16, 2014

Reported below, 117 AD3d 1593.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution.

NOMURA ASSET CAPITAL CORPORATION et al., Respondents-
Appellants, v CADWALADER, WICKERSHAM & TAFT LLP,
Appellant-Respondent.

Submitted July 21, 2014; decided September 16, 2014

Reported below, 115 AD3d 228.

Motion for a stay granted.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. JOMO WILLIAMS,
Appellant, v COMMISSIONER OF MID-STATE CORRECTIONAL
FACILITY et al., Respondents.

Submitted July 28, 2014; decided September 16, 2014

Motion for leave to appeal dismissed upon the ground that it does not lie from the order of an individual Justice of the Appellate Division (*see* NY Const, art VI, § 3 [b]; CPLR 5602). Motion for poor person relief dismissed as academic.

In the Matter of JEAN TOUTPUISSANT, Appellant, v BRIAN FISCHER, as Commissioner of Corrections and Community Supervision, Respondent.

Decided September 16, 2014

Reported below, 116 AD3d 1276.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of the Estate of STANLEY WAGNER, Deceased. JAAN AARISMAA, IV, Appellant; JOHN L. WAGNER, as Executor of STANLEY A. WAGNER, Deceased, Respondent.

Submitted August 4, 2014; decided September 16, 2014

On the Court's own motion, appeal transferred, without costs, to the Appellate Division, Fourth Department, upon the ground that a direct appeal does not lie when questions other than the constitutional validity of a statutory provision are involved (*see* NY Const, art VI, §§ 3 [b] [2]; 5 [b]; CPLR 5601 [b] [2]). Motion to strike denied.

LAKEISHA WILLIAMS, Individually and as Next Friend of JAVON WILLIAMS, et al., Appellants, v GLADYS CARRIÓN, in Her Official Capacity as Commissioner of New York State Office of Children and Family Services, Respondent.

Decided September 16, 2014

Reported below, 117 AD3d 1387.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

WISSELMAN, HAROUNIAN AND ASSOCIATES, P.C., Respondent, v CAF DOWLAH, Appellant.

Decided September 16, 2014

Reported below, 117 AD3d 822.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

SHEREEANN ALAYOFF, Appellant, v ABRAHAM ALAYOFF, Respondent.

Submitted July 7, 2014; decided September 18, 2014

Reported below, 2014 NY Slip Op 72603(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for a stay dismissed as academic.

In the Matter of AVALON GARDENS REHABILITATION AND HEALTH CARE CENTER, LLC, Appellant. COMMISSIONER OF LABOR, Respondent. (And 19 Other Related Proceedings.)

Decided September 18, 2014

Reported below, 118 AD3d 1085.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

JOHN BARDES et al., Appellants, v GALLO PINTADO et al., Respondents.

Submitted July 21, 2014; decided September 18, 2014

Reported below, 115 AD3d 894; 2014 NY Slip Op 02003.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

BRANIC INTERNATIONAL REALTY CORP., Appellant, v PHILLIP PITT, Respondent, et al., Respondents.

Submitted September 15, 2014; decided September 18, 2014

Reported below, 106 AD3d 178.

Motion by The Bronx Defenders, Inc., et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

Judge ABDUS-SALAAM taking no part.

CITY OF NEW YORK, Respondent, v ZURICH AMERICAN INSURANCE COMPANY, Appellant.

Submitted June 30, 2014; decided September 18, 2014

Reported below, 117 AD3d 474.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

LAQUANA CONRAD, Appellant, v APOLONIA ALICEA et al., Respondents.

Submitted July 7, 2014; decided September 18, 2014

Reported below, 117 AD3d 560.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of EMPIRE STATE REALTY TRUST, INC. INVESTOR LITIGATION.

LEON MEYERS et al., Respondents, and MARY JANE FALES et al., Intervenor-Plaintiffs-Appellants, v MALKIN HOLDINGS L.L.C. et al., Respondents.

Submitted July 7, 2014; decided September 18, 2014

Reported below, 114 AD3d 570.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of MAETREUM OF CYBELE, MAGNA MATER, INC., Respondent, v NANCY MCCOY, as Assessor of the Town of Catskill, et al., Appellants. (And Two Other Related Proceedings.)

Submitted September 15, 2014; decided September 18, 2014

Reported below, 111 AD3d 1098.

Motion by Association of Towns of the State of New York for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed.

In the Matter of MERRY-GO-ROUND PLAYHOUSE, INC., Respondent, v ASSESSOR OF CITY OF AUBURN et al., Appellants.

Submitted September 15, 2014; decided September 18, 2014

Reported below, 104 AD3d 1294.

Motion by Association of Towns of the State of New York et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed.

In the Matter of 155 WEST 21ST STREET, LLC, Appellant, et al., Petitioner, v ALISTAIR McMULLAN, Respondent, et al., Respondent.

Submitted July 7, 2014; decided September 18, 2014

Reported below, 112 AD3d 526.

Motion to expand the record denied.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v LIONEL MCCRAY, Appellant.

Submitted July 21, 2014; decided September 18, 2014

Reported below, 102 AD3d 560.

Motion for reargument denied [*see* 23 NY3d 621 (2014)].

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TERENCE MCCRAY, Appellant.

Submitted June 16, 2014; decided September 18, 2014

Reported below, 102 AD3d 1000.

Motions for reargument denied [*see* 23 NY3d 193 (2014)].

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v DWIGHT
R. DeLEE, Respondent.

Submitted September 15, 2014; decided September 18, 2014

Reported below, 108 AD3d 1145.

Motion by District Attorneys Association of the State of New York for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v GRAHAM
REID, Appellant.

Submitted September 15, 2014; decided September 18, 2014

Reported below, 104 AD3d 58.

Motion by New York Civil Liberties Union for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

Judge ABDUS-SALAAM taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v SAMUEL
SMALL, Also Known as SAMUEL SMALLS, Appellant.

Submitted September 15, 2014; decided September 18, 2014

Reported below, 112 AD3d 857.

Motion for assignment of counsel granted and Lynn W.L. Fahey, Esq., Appellate Advocates, 111 John Street, 9th Floor, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DENNIS
P. SMALLS, Appellant.

Submitted September 15, 2014; decided September 18, 2014

Reported below, 116 AD3d 474.

Motion for assignment of counsel granted and Seymour James, Jr., Esq., The Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

DOMINGO RAMALES, Plaintiff, v PECKER IRON WORKERS OF WEST-CHESTER, INC., Appellant, and CHRIST FELLOWSHIP BAPTIST CHURCH et al., Respondents. (And Third-Party Actions.)

Submitted August 18, 2014; decided September 18, 2014

Reported below, 114 AD3d 920.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

MANUEL REIS, Individually and as Administrator of the Estate of SARA REIS, Deceased, Respondent, v VOLVO CARS OF NORTH AMERICA et al., Appellants. (And a Third-Party Action.)

Submitted August 4, 2014; decided September 18, 2014

Reported below, 105 AD3d 663.

Motion for reargument denied with \$100 costs and necessary reproduction disbursements [*see* 24 NY3d 35 (2014)].

FERNANDO ROMAN et al., Plaintiffs, and LIBERTY MUTUAL INSURANCE COMPANY, as Subrogee of Julia Roman, Appellant, v SILVIA B. CABRERA, Defendant, and FRANK LAWRENCE, IV, Respondent.

Submitted July 28, 2014; decided September 18, 2014

Reported below, 113 AD3d 541; 2014 NY Slip Op 72897(U); 2014 NY Slip Op 72896(U); 2014 NY Slip Op 65631(U).

Motion, insofar as it seeks leave to appeal from the March 2014 and May 2014 Appellate Division orders, dismissed upon the ground that such orders do not finally determine the action within the meaning of the Constitution; motion, insofar as it seeks leave to appeal from the January 2014 Appellate Division order, denied.

In the Matter of MARY VERONICA SANTIAGO-MONTEVERDE,
Debtor.

MARY VERONICA SANTIAGO-MONTEVERDE, Appellant, v JOHN S.
PEREIRA, Chapter 7 Trustee, Respondent.

Submitted September 15, 2014; decided September 18, 2014

See 747 F3d 153.

Motion by Brad Hoylman et al. for leave to file a brief amici curiae on consideration of the certified question herein granted and the proposed brief is accepted as filed.

In the Matter of MARY VERONICA SANTIAGO-MONTEVERDE,
Debtor.

MARY VERONICA SANTIAGO-MONTEVERDE, Appellant, v JOHN S.
PEREIRA, Chapter 7 Trustee, Respondent.

Submitted September 15, 2014; decided September 18, 2014

See 747 F3d 153.

Motion by New York City Bankruptcy Assistance Project et al. for leave to file a brief amici curiae on consideration of the certified question herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

SUE/PERIOR CONCRETE & PAVING, INC., Respondent, v LEWISTON
GOLF COURSE CORPORATION, Appellant, et al., Defendants.

Submitted September 15, 2014; decided September 18, 2014

Reported below, 109 AD3d 80.

Motion by Seneca Nation of Indians for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

TWIN SECURITIES, INC. et al., Appellants, v ADVOCATE & LICHTEN-
STEIN, LLP, et al., Respondents, et al., Defendant.

Submitted August 4, 2014; decided September 18, 2014

Reported below, 113 AD3d 565.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of AIRIONNA C. and Others. MONROE COUNTY DEPARTMENT OF HUMAN SERVICES, Respondent; SHERNELL E., Respondent. MARY P. DAVISON, ESQ., Attorney for the Children, Appellant.

Submitted July 21, 2014; decided September 23, 2014

Reported below, 118 AD3d 1430.

Motion for leave to appeal dismissed upon the ground that appellant, having taken no appeal to the Appellate Division, may not appeal to the Court of Appeals from the Appellate Division order of affirmance.

In the Matter of DASHAUN G. and Another, Infants. MONROE COUNTY DEPARTMENT OF HUMAN SERVICES, Respondent; DIANA B., Respondent; JONATHAN G., Intervenor-Appellant.

Submitted July 28, 2014; decided September 23, 2014

Reported below, 117 AD3d 1526.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

KEYSPAN GENERATION, LLC, et al., Respondents, v NASSAU COUNTY et al., Appellants. (And Another Action.)

Submitted August 11, 2014; decided September 23, 2014

Reported below, 118 AD3d 949.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the actions within the meaning of the Constitution and is not an order of the type provided for in CPLR 5602 (a) (2).

Judge RIVERA taking no part.

NEW YORK TELEPHONE COMPANY, Respondent, v SUPERVISOR OF
TOWN OF HEMPSTEAD et al., Defendants/Third-Party
Plaintiffs-Appellants. (And Four Other Actions.)

Submitted July 21, 2014; decided September 23, 2014

Reported below, 115 AD3d 824.

Motion by the Town of North Hempstead for leave to file a brief amicus curiae on the motions for leave to appeal herein granted and the brief is accepted as filed.

Judge RIVERA taking no part.

In the Matter of PATROLMEN'S BENEVOLENT ASSOCIATION OF THE
CITY OF NEW YORK, INC., et al., Appellants, v CITY OF NEW
YORK et al., Respondents.

Submitted August 25, 2014; decided September 23, 2014

Reported below, 119 AD3d 1.

Motion for a stay granted.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v JESSE
ROBERITES, Respondent.

Submitted August 11, 2014; decided September 23, 2014

Reported below, 115 AD3d 1291.

Motion for assignment of counsel granted and William J. Comiskey, Esq., care of Hodgson Russ, LLP, 677 Broadway, Suite 301, Albany, New York 12207 assigned as counsel to the respondent on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v JESSE
ROBERITES, Respondent.

Submitted August 25, 2014; decided September 23, 2014

Reported below, 115 AD3d 1291.

Motion to dismiss appeal and for further relief denied.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. DEMETRIO LIF-
RIERI, Appellant, v WILLIAM A. LEE, Respondent.

Submitted August 25, 2014; decided September 23, 2014

Reported below, 116 AD3d 720; 2014 NY Slip Op 76411(U).

Motion, insofar as it seeks leave to appeal from the April 2014 Appellate Division order, dismissed as untimely (*see* CPLR 5513 [b]); motion, insofar as it seeks leave to appeal from the June 2014 Appellate Division order, dismissed upon the ground that such order does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

CAROLYN MARY SCHENK, Appellant, v STATEN ISLAND UNIVERSITY HOSPITAL et al., Respondents, et al., Defendant.

Submitted December 16, 2013; decided September 23, 2014

Reported below, 108 AD3d 661.

Motion for reargument denied [*see* 22 NY3d 951 (2013)].

In the Matter of the Claim of VOLODYMYR I. TKACHYSHYN, Appellant. COMMISSIONER OF LABOR, Respondent.

Submitted August 25, 2014; decided September 23, 2014

Reported below, 110 AD3d 1130.

Motion for reargument of motion for leave to appeal denied [*see* 23 NY3d 1016 (2014)].

In the Matter of the Claim of VOLODYMYR I. TKACHYSHYN, Appellant. COMMISSIONER OF LABOR, Respondent.

Submitted August 25, 2014; decided September 23, 2014

Reported below, 109 AD3d 1071.

Motion for reargument of motion for leave to appeal denied [*see* 23 NY3d 1016 (2014)].

VERIZON NEW YORK, INC., Formerly Known as NEW YORK TELEPHONE COMPANY, Plaintiff, v SUPERVISOR OF TOWN OF OYSTERS BAY et al., Defendants and Third-Party Plaintiffs-Respondents. COUNTY OF NASSAU et al., Third-Party Defendants-Appellants.

Submitted August 4, 2014; decided September 23, 2014

Reported below, 115 AD3d 849, 2014 NY Slip Op 01742.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution and is not an order of the type provided for in CPLR 5602 (a) (2).

Judge RIVERA taking no part.

In the Matter of VILLAGE OF HAVERSTRAW, Appellant. AAA
ELECTRICIANS, INC., Respondent.

Submitted July 28, 2014; decided September 23, 2014

Reported below, 114 AD3d 955.

Motion by New York State Conference of Mayors and Municipal Officials for leave to appear amicus curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

In the Matter of VILLAGE OF HAVERSTRAW, Appellant. AAA
ELECTRICIANS, INC., Respondent.

Submitted July 28, 2014; decided September 23, 2014

Reported below, 114 AD3d 955.

Motion by Rockland Business Association for leave to appear amicus curiae on the motion for leave to appeal herein granted and the affidavit is accepted as filed.

In the Matter of VILLAGE OF HAVERSTRAW, Appellant. AAA
ELECTRICIANS, INC., Respondent.

Submitted July 28, 2014; decided September 23, 2014

Reported below, 114 AD3d 955.

Motion by City of Mount Vernon for leave to appear amicus curiae on the motion for leave to appeal herein granted and the affidavit is accepted as filed.

In the Matter of VILLAGE OF HAVERSTRAW, Appellant. AAA
ELECTRICIANS, INC., Respondent.

Submitted July 28, 2014; decided September 23, 2014

Reported below, 114 AD3d 955.

Motion by Ross J. Pepe, president of Construction Industry Council of Westchester and the Hudson Valley and Building Contractors Association, for leave to appear amicus curiae on the motion for leave to appeal herein granted and the affidavit is accepted as filed.

In the Matter of VILLAGE OF HAVERSTRAW, Appellant. AAA
ELECTRICIANS, INC., Respondent.

Submitted July 28, 2014; decided September 23, 2014

Reported below, 114 AD3d 955.

Motion by Village of West Haverstraw for leave to appear amicus curiae on the motion for leave to appeal herein granted and the affidavit is accepted as filed.

In the Matter of VILLAGE OF HAVERSTRAW, Appellant. AAA
ELECTRICIANS, INC., Respondent.

Submitted July 28, 2014; decided September 23, 2014

Reported below, 114 AD3d 955.

Motion by Westchester County Chamber of Commerce, Inc., doing business as The Business Council of Westchester, for leave to appear amicus curiae on the motion for leave to appeal herein granted and the affidavit is accepted as filed.

In the Matter of VILLAGE OF HAVERSTRAW, Appellant. AAA
ELECTRICIANS, INC., Respondent.

Submitted July 28, 2014; decided September 23, 2014

Reported below, 114 AD3d 955.

Motion by City of New Rochelle for leave to appear amicus curiae on the motion for leave to appeal herein granted and the affidavit is accepted as filed.

In the Matter of VILLAGE OF HAVERSTRAW, Appellant. AAA
ELECTRICIANS, INC., Respondent.

Submitted July 28, 2014; decided September 23, 2014

Reported below, 114 AD3d 955.

Motion by Town of Haverstraw for leave to appear amicus curiae on the motion for leave to appeal herein granted and the affidavit is accepted as filed.

In the Matter of VILLAGE OF HAVERSTRAW, Appellant. AAA
ELECTRICIANS, INC., Respondent.

Submitted July 28, 2014; decided September 23, 2014

Reported below, 114 AD3d 955.

Motion by Hon. Edwin J. Day, Rockland County Executive, for leave to appear amicus curiae on the motion for leave to appeal herein granted and the affidavit is accepted as filed.

In the Matter of VILLAGE OF HAVERSTRAW, Appellant. AAA
ELECTRICIANS, INC., Respondent.

Submitted July 28, 2014; decided September 23, 2014

Reported below, 114 AD3d 955.

Motion by Village of Ossining for leave to appear amicus curiae on the motion for leave to appeal herein granted and the affidavit is accepted as filed.

In the Matter of VILLAGE OF HAVERSTRAW, Appellant. AAA
ELECTRICIANS, INC., Respondent.

Submitted July 28, 2014; decided September 23, 2014

Reported below, 114 AD3d 955.

Motion by Builders Institute of Westchester and the Mid-Hudson Region, Inc. for leave to appear amicus curiae on the motion for leave to appeal herein granted and the affidavit is accepted as filed.

In the Matter of VILLAGE OF HAVERSTRAW, Appellant. AAA
ELECTRICIANS, INC., Respondent.

Submitted July 28, 2014; decided September 23, 2014

Reported below, 114 AD3d 955.

Motion by City of Yonkers for leave to appear amicus curiae on the motion for leave to appeal herein granted and the affidavit is accepted as filed.

In the Matter of VILLAGE OF HAVERSTRAW, Appellant. AAA
ELECTRICIANS, INC., Respondent.

Submitted August 4, 2014; decided September 23, 2014

Reported below, 114 AD3d 955.

Motion by Community Initiatives Development Corporation for leave to appear amicus curiae on the motion for leave to appeal herein granted and the affidavit is accepted as filed.

In the Matter of VILLAGE OF HAVERSTRAW, Appellant. AAA
ELECTRICIANS, INC., Respondent.

Submitted August 11, 2014; decided September 23, 2014

Reported below, 114 AD3d 955.

Motion by Village of Tarrytown for leave to appear amicus curiae on the motion for leave to appeal herein granted and the affidavit is accepted as filed.

In the Matter of VILLAGE OF HAVERSTRAW, Appellant. AAA
ELECTRICIANS, INC., Respondent.

Submitted August 11, 2014; decided September 23, 2014

Reported below, 114 AD3d 955.

Motion by New York State Economic Development Council for leave to appear amicus curiae on the motion for leave to appeal herein granted and the affidavit is accepted as filed.

In the Matter of VILLAGE OF HAVERSTRAW, Appellant. AAA
ELECTRICIANS, INC., Respondent.

Submitted August 11, 2014; decided September 23, 2014

Reported below, 114 AD3d 955.

Motion by City of Hornell for leave to appear amicus curiae on the motion for leave to appeal herein granted and the affidavit is accepted as filed.

Submitted August 11, 2014; decided September 23, 2014

Reported below, 114 AD3d 955.

Motion by City of Syracuse for leave to appear amicus curiae on the motion for leave to appeal herein granted and the affidavit is accepted as filed.

WASHINGTON MUTUAL BANK, Respondent, v CAROLYN SCHENK,
Appellant, et al., Defendants.

Submitted February 24, 2014; decided September 23, 2014

Reported below, 112 AD3d 615.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

(September 1, 2014 through September 30, 2014)

People v Soto

1st Dept: 113 AD3d 153

9/8/14

(September 1, 2014 through September 30, 2014)

People v Adams	2d Dept: 118 AD3d 717 (Kings)	denied 9/16/14 (Read, J.)
People v Allen	3d Dept: 118 AD3d 1048 (Broome)	denied 9/25/14 (Smith, J.)
People v Anderson	1st Dept: 116 AD3d 499 (NY)	denied 9/17/14 (Read, J.)
People v Armstead	2d Dept: 118 AD3d 903 (Queens)	denied 9/30/14 (Grafteo, J.)
People v Atkinson	4th Dept: 105 AD3d 1349 (Genesee)	denied 9/24/14 (Lippman, Ch. J.)
People v Austin	App Term, 1st Dept: 43 Misc 3d 135(A) (Bronx)	denied 9/24/14 (Pigott, J.)

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People v Ayer	4th Dept: 118 AD3d 1339 (Erie)	denied 9/29/14 (Lippman, Ch. J.)
People v Barabondeka	App Term, 1st Dept: 43 Misc 3d 144(A) (NY)	denied 9/25/14 (Smith, J.)
People v Barden	1st Dept: 117 AD3d 216 (NY)	granted 9/23/14 (Pigott, J.)
People v Bass	3d Dept: 118 AD3d 1033 (Schenectady)	denied 9/16/14 (Lippman, Ch. J.)
People v Batista	App Div, 1st Dept: 2014 NY Slip Op 73366(U) (Bronx)	denied 9/24/14 (Pigott, J.)
People v Beach	2d Dept: 118 AD3d 905 (Dutchess)	denied 9/2/14 (Pigott, J.)
People v Becker	County Ct, 7/21/14 (Erie)	denied 9/29/14 (Grafteo, J.)
People v Bellezza	2d Dept: 119 AD3d 598 (Suffolk)	denied 9/18/14 (Rivera, J.)
People v Bennett	1st Dept: 118 AD3d 641 (NY)	denied 9/25/14 (Smith, J.)
People v Biar	2d Dept: 119 AD3d 599 (Westchester)	denied 9/23/14 (Pigott, J.)
People v Bilal	1st Dept: 118 AD3d 448 (NY)	granted 9/25/14 (Rivera, J.)
People v Black	App Div, 3d Dept: 2014 NY Slip Op 78199(U) (Chemung)	dismissed 9/29/14 (Lippman, Ch. J.)
People v Brooks	3d Dept: 118 AD3d 1123 (Columbia)	denied 9/17/14 (Rivera, J.)
People v Brown (John)	3d Dept: 119 AD3d 980 (Rensselaer)	denied 9/29/14 (Abdus-Salaam, J.)
People v Brown (Micha)	3d Dept: 115 AD3d 1115 (Schenectady)	denied 9/8/14 (Abdus-Salaam, J.)
People v Brown (Ricky)	2d Dept: 116 AD3d 1062 (Rockland)	denied 9/26/14 (Abdus-Salaam, J.)
People v Caldwell	App Div, 4th Dept (Herkimer)	dismissed 9/26/14 (Smith, J.)
People v Campbell	4th Dept: 118 AD3d 1464 (Monroe)	denied 9/26/14 (Smith, J.)
People v Catala	1st Dept: 116 AD3d 493 (Bronx)	denied 9/8/14 (Abdus-Salaam, J.)
People v Cedenno	2d Dept: 113 AD3d 695 (Queens)	granted 9/3/14 (Smith, J.)
People v Cisneros	3d Dept: 115 AD3d 1117 (St. Lawrence)	denied 9/8/14 (Abdus-Salaam, J.)
People v Colon	3d Dept: 116 AD3d 1234 (Montgomery)	denied 9/12/14 (Abdus-Salaam, J.)
People v Cook	4th Dept: 118 AD3d 1499 (Monroe)	denied 9/16/14 (Read, J.)

People v Cookhorne	4th Dept: 117 AD3d 1484 (Orleans)	denied 9/26/14 (Abdus-Salaam, J.)
People v Cordero	2d Dept: 118 AD3d 1017 (Westchester)	denied 9/16/14 (Lippman, Ch. J.)
People v CP	3d Dept: 118 AD3d 1038 (Ulster)	denied 9/15/14 (Lippman, Ch. J.)
People v Crammond	County Ct, 2/27/14 (Essex)	denied 9/18/14 (Rivera, J.)
People v Daisley	1st Dept: 115 AD3d 535 (NY)	denied 9/25/14 (Abdus-Salaam, J.)
People v Davis (Lateek)	4th Dept: 119 AD3d 1383 (Cayuga)	denied 9/16/14 (Read, J.) (Appeal No. 1)
People v Davis (Lateek)	4th Dept: 119 AD3d 1384 (Cayuga)	denied 9/16/14 (Read, J.) (Appeal No. 2)
People v Davis (Tyrone)	2d Dept: 118 AD3d 1017 (Kings)	denied 9/16/14 (Read, J.)
People v DeFreitas	3d Dept: 116 AD3d 1078 (Schoharie)	denied 9/12/14 (Abdus-Salaam, J.)
People v Derx	County Ct, 4/23/14 (Cattaraugus)	denied 9/17/14 (Read, J.)
People v Dinkins	1st Dept: 118 AD3d 559 (NY)	withdrawn 9/30/14 (Grafteo, J.)
People v Doe (John)	4th Dept: 118 AD3d 1413 (Monroe)	denied 9/26/14 (Smith, J.)
People v Doe (John)	4th Dept: 118 AD3d 1464 (Monroe)	denied 9/26/14 (Smith, J.)
People v Elston	1st Dept: 118 AD3d 538 (Bronx)	denied 9/23/14 (Pigott, J.)
People v Evans	2d Dept: 116 AD3d 879 (Kings)	denied 9/29/14 (Grafteo, J.)
People v Favourite (Ravin)	App Div, 1st Dept: 2014 NY Slip Op 74119(U) (Bronx)	denied 9/30/14 (Grafteo, J.)
People v Favourite (Rivin)	App Div, 1st Dept: 2014 NY Slip Op 74119(U) (Bronx)	denied 9/30/14 (Grafteo, J.)
People v Fernandez	2d Dept: 118 AD3d 818 (Queens)	denied 9/30/14 (Smith, J.)
People v Flemming	App Div, 1st Dept: 2014 NY Slip Op 72250(U) (Bronx)	dismissed 9/16/14 (Read, J.)
People v Francis	App Div, 1st Dept: 2013 NY Slip Op 95420(U) (NY)	dismissed 9/16/14 (Read, J.)
People v Frazier	2d Dept: 117 AD3d 1077 (Kings)	denied 9/24/14 (Pigott, J.)
People v Garcia	1st Dept: 114 AD3d 616 (NY)	denied 9/17/14 (Rivera, J.)
People v Gary	2d Dept: 115 AD3d 760 (Nassau)	granted 9/5/14 (Pigott, J.)

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People v Glover	4th Dept: 117 AD3d 1477 (Monroe)	denied reconsideration 9/29/14 (Grafteo, J.)
People v Griffin	2d Dept: 118 AD3d 721 (Dutchess)	denied 9/17/14 (Rivera, J.)
People v Griffith	App Div, 4th Dept (Onondaga)	denied reconsideration 9/26/14 (Grafteo, J.)
People v Hall	App Div, 3d Dept: 2013 NY Slip Op 76193(U) (Albany)	denied reconsideration 9/18/14 (Rivera, J.)
People v Harris	4th Dept: 118 AD3d 1368 (Erie)	denied 9/25/14 (Smith, J.)
People v Hassett	4th Dept: 119 AD3d 1443 (Onondaga)	denied 9/29/14 (Grafteo, J.)
People v Heard	App Div, 3d Dept: 2014 NY Slip Op 71731(U) (Albany)	denied 9/18/14 (Rivera, J.)
People v Henning	1st Dept: 116 AD3d 634 (NY)	denied 9/8/14 (Abdus-Salaam, J.)
People v Henry	2d Dept: 119 AD3d 607 (Queens)	denied 9/23/14 (Pigott, J.)
People v Herron	1st Dept: 117 AD3d 471 (NY)	denied 9/17/14 (Read, J.)
People v Hill	2d Dept: 119 AD3d 609 (Kings)	denied 9/2/14 (Lippman, Ch. J.)
People v Holland	1st Dept: 115 AD3d 492 (NY)	withdrawn 9/15/14 (Read, J.)
People v Holmes	2d Dept: 119 AD3d 815 (Queens)	denied 9/29/14 (Grafteo, J.)
People v Howard (Kevin)	App Div, 1st Dept: 2013 NY Slip Op 95420(U) (NY)	dismissed 9/16/14 (Read, J.)
People v Howard (Marcelles)	3d Dept: 119 AD3d 1090 (Albany)	denied 9/24/14 (Pigott, J.)
People v Howard (Tyrone)	App Div, 1st Dept: 2013 NY Slip Op 95420(U) (NY)	dismissed 9/16/14 (Read, J.)
People v Jean	2d Dept: 117 AD3d 875 (Nassau)	denied 9/22/14 (Read, J.)
People v Johnson (Maurice)	4th Dept: 114 AD3d 1132 (Monroe)	denied 9/17/14 (Rivera, J.)
People v Johnson (Neil)	2d Dept: 114 AD3d 877 (Queens)	denied 9/24/14 (Lippman, Ch. J.)
People v Jones (Devon)	2d Dept: 108 AD3d 779 (Orange)	denied 9/17/14 (Rivera, J.)
People v Jones (Devon)	3d Dept: 114 AD3d 1080 (Ulster)	denied 9/17/14 (Rivera, J.)
People v Jones (Jeremiah)	4th Dept: 118 AD3d 1354 (Onondaga)	denied 9/24/14 (Pigott, J.)

People v Jones (Marvel)	1st Dept: 110 AD3d 493 (NY)	denied 9/2/14 (Lippman, Ch. J.)
People v Kaetzel	3d Dept: 117 AD3d 1187 (Warren)	denied 9/17/14 (Rivera, J.)
People v Kearney	2d Dept: 116 AD3d 1064 (Queens)	denied 9/26/14 (Abdus-Salaam, J.)
People v Kesick	4th Dept: 119 AD3d 1371 (Erie)	denied 9/12/14 (Lippman, Ch. J.)
People v Khramtsov	1st Dept: 118 AD3d 584 (NY)	denied 9/16/14 (Read, J.)
People v King	1st Dept: 116 AD3d 424 (NY)	denied 9/17/14 (Read, J.)
People v Kwok Sze	2d Dept: 113 AD3d 795 (Westchester)	denied 9/29/14 (Grafteo, J.)
People v Latimer	App Div, 3d Dept: 2014 NY Slip Op 74217(U) (Ulster)	denied 9/2/14 (Pigott, J.)
People v Laviscount	2d Dept: 116 AD3d 976 (Queens)	denied 9/25/14 (Read, J.)
People v Leach	4th Dept: 119 AD3d 1429 (Genesee)	denied 9/29/14 (Grafteo, J.)
People v Lester	App Div, 1st Dept: 2013 NY Slip Op 95420(U) (NY)	dismissed 9/16/14 (Read, J.)
People v Lewis	2d Dept: 116 AD3d 791 (Rockland)	denied 9/8/14 (Abdus-Salaam, J.)
People v Litchmore	2d Dept: 116 AD3d 884 (Kings)	denied 9/8/14 (Abdus-Salaam, J.)
People v Lopez	2d Dept: 118 AD3d 914 (Kings)	denied 9/23/14 (Lippman, Ch. J.)
People v Lorenz	4th Dept: 119 AD3d 1450 (Erie)	denied 9/26/14 (Grafteo, J.)
People v Lucius	4th Dept: 115 AD3d 1273 (Monroe)	denied 9/8/14 (Abdus-Salaam, J.)
People v Lydecker	3d Dept: 116 AD3d 1160 (Saratoga)	denied 9/22/14 (Read, J.)
People v Lynch	2d Dept: 116 AD3d 979 (Suffolk)	granted 9/3/14 (Smith, J.)
People v Mair	2d Dept: 119 AD3d 875 (Queens)	denied 9/12/14 (Lippman, Ch. J.)
People v Mallahan	2d Dept: 119 AD3d 875 (Suffolk)	denied 9/23/14 (Lippman, Ch. J.)
People v Mason	2d Dept: 119 AD3d 613 (Suffolk)	denied 9/16/14 (Read, J.)
People v Matias	App Div, 1st Dept: 2014 NY Slip Op 72892(U) (Bronx)	denied 9/18/14 (Rivera, J.)
People v McClinton	2d Dept: 118 AD3d 915 (Suffolk)	denied 9/25/14 (Smith, J.)

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People v McCorkle	1st Dept: 111 AD3d 557 (NY)	denied 9/25/14 (Abdus-Salaam, J.)
People v Means	2d Dept: 116 AD3d 715 (Richmond)	denied 9/8/14 (Abdus-Salaam, J.)
People v Metellus	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 44 Misc 3d 13 (Queens)	denied 9/22/14 (Read, J.)
People v Milord	2d Dept: 115 AD3d 774 (Suffolk)	denied 9/26/14 (Abdus-Salaam, J.)
People v Mitchell (Ikeem)	4th Dept: 118 AD3d 1417 (Onondaga)	denied 9/2/14 (Pigott, J.)
People v Mitchell (Ramell)	4th Dept: 118 AD3d 1356 (Monroe)	denied 9/2/14 (Lippman, Ch. J.)
People v "Mondo"	4th Dept: 117 AD3d 1497 (Erie)	denied 9/17/14 (Rivera, J.)
People v Morgan	App Div, 3d Dept: 2014 NY Slip Op 67081(U) (Columbia)	denied reconsideration 9/18/14 (Read, J.)
People v Mustafa	2d Dept: 114 AD3d 966 (Queens)	denied 9/24/14 (Lippman, Ch. J.)
People v Mydosh	3d Dept: 117 AD3d 1195 (Sullivan)	denied 9/18/14 (Lippman, Ch. J.)
People v Ndiaye	App Term, 1st Dept: 2013 NY Slip Op 79515(U) (NY)	denied 9/22/14 (Read, J.)
People v Nedd	2d Dept: 118 AD3d 731 (Kings)	denied 9/18/14 (Rivera, J.)
People v Noe	App Term, 1st Dept: 2014 NY Slip Op 76240(U) (NY)	dismissed 9/26/14 (Grafteo, J.)
People v Oliphant	2d Dept: 117 AD3d 1085 (Queens)	denied 9/24/14 (Pigott, J.)
People v Ormejuste	2d Dept: 117 AD3d 756 (Nassau)	denied 9/17/14 (Read, J.)
People v Ormsby	3d Dept: 119 AD3d 1159 (Clinton)	denied 9/30/14 (Grafteo, J.)
People v Page	1st Dept: 118 AD3d 615 (NY)	denied 9/2/14 (Pigott, J.)
People v Patrice	2d Dept: 116 AD3d 888 (Queens)	denied 9/17/14 (Read, J.)
People v Pavone	3d Dept: 117 AD3d 1329 (Clinton)	granted 9/24/14 (Pigott, J.)
People v Perez	2d Dept: 120 AD3d 514 (Westchester)	denied 9/30/14 (Grafteo, J.)
People v Prial	4th Dept: 118 AD3d 1498 (Allegany)	denied 9/23/14 (Pigott, J.)
People v Rabideau	App Div, 3d Dept: 2014 NY Slip Op 76935(U) (Clinton)	denied 9/29/14 (Lippman, Ch. J.)
People v Ramsay	2d Dept: 120 AD3d 719 (Kings)	denied 9/29/14 (Lippman, Ch. J.)

People v Ray	2d Dept: 117 AD3d 882 (Nassau)	denied 9/24/14 (Pigott, J.)
People v Rejab	1st Dept: 116 AD3d 577 (NY)	denied 9/17/14 (Read, J.)
People v Richardson	App Div, 1st Dept: 2014 NY Slip Op 71296(U) (NY)	denied 9/18/14 (Rivera, J.)
People v Richens	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 43 Misc 3d 140(A) (Queens)	denied 9/22/14 (Read, J.)
People v Rivera	1st Dept: 118 AD3d 626 (NY)	denied 9/18/14 (Rivera, J.)
People v Rodriguez (Juan)	3d Dept: 118 AD3d 1182 (Ulster)	denied 9/29/14 (Lippman, Ch. J.)
People v Rodriguez (Louis)	1st Dept: 118 AD3d 451 (NY)	denied 9/17/14 (Rivera, J.)
People v Rodriguez (Raymond)	1st Dept: 116 AD3d 487 (NY)	denied 9/17/14 (Read, J.)
People v Rodriguez (Vina)	App Term, 2d Dept, 9th & 10th Jud Dists: 2014 NY Slip Op 60280(U) (Suffolk)	denied 9/17/14 (Read, J.)
People v Rosario	App Div, 1st Dept: 2014 NY Slip Op 66337(U) (Bronx)	granted 9/4/14 (Graffeo, J.)
People v Roseborough	4th Dept: 118 AD3d 1347 (Monroe)	denied 9/26/14 (Smith, J.)
People v Ross	4th Dept: 118 AD3d 1413 (Monroe)	denied 9/26/14 (Smith, J.)
People v Rossborough	4th Dept: 113 AD3d 1114 (Wyoming)	granted 9/24/14 (Smith, J.)
People v Samuels	4th Dept: 113 AD3d 1117 (Monroe)	denied 9/3/14 (Abdus-Salaam, J.)
People v Santiago (Michael)	3d Dept: 118 AD3d 1163 (Saratoga)	denied 9/16/14 (Read, J.)
People v Santiago (Natalia)	1st Dept: 119 AD3d 484 (Bronx)	denied 9/29/14 (Lippman, Ch. J.)
People v Schultz	4th Dept: 118 AD3d 1348 (Yates)	denied 9/16/14 (Lippman, Ch. J.)
People v Scott	4th Dept: 118 AD3d 1363 (Erie)	denied 9/24/14 (Pigott, J.)
People v Sealy	2d Dept: 116 AD3d 988 (Kings)	denied 9/8/14 (Abdus-Salaam, J.)
People v Shanks	3d Dept: 118 AD3d 1038 (Ulster)	denied 9/15/14 (Lippman, Ch. J.)
People v Simmons	4th Dept: 119 AD3d 1343 (Erie)	denied 9/29/14 (Graffeo, J.)
People v Singh	1st Dept: 116 AD3d 625 (Bronx)	denied 9/8/14 (Abdus-Salaam, J.)
People v Singleton	4th Dept: 118 AD3d 1368 (Monroe)	denied 9/23/14 (Pigott, J.)
People v Skinner	App Div, 1st Dept: 2014 NY Slip Op 69952(U) (NY)	denied 9/18/14 (Rivera, J.)

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People v Smith	2d Dept: 112 AD3d 759 (Kings)	denied 9/16/14 (Read, J.)
People v Snell	4th Dept: 118 AD3d 1350 (Erie)	denied 9/2/14 (Pigott, J.)
People v Spangenberg	4th Dept: 118 AD3d 1444 (Steuben)	denied 9/18/14 (Lippman, Ch. J.)
People v Spencer	4th Dept: 119 AD3d 1411 (Oneida)	denied 9/29/14 (Grafteo, J.)
People v Tacneau	2d Dept: 119 AD3d 618 (Queens)	denied 9/23/14 (Pigott, J.)
People v Tafari	App Div, 3d Dept: 2014 NY Slip Op 77534(U) (Ulster)	dismissed 9/26/14 (Grafteo, J.)
People v Thomas	4th Dept: 114 AD3d 1138 (Monroe)	denied 9/17/14 (Read, J.)
People v Thompson	2d Dept: 118 AD3d 732 (Queens)	denied 9/16/14 (Read, J.)
People v Torres	4th Dept: 117 AD3d 1497 (Erie)	denied 9/17/14 (Rivera, J.)
People v Valentin	2d Dept: 118 AD3d 823 (Kings)	denied 9/29/14 (Grafteo, J.)
People v Vandemark	3d Dept: 117 AD3d 1339 (Albany)	denied 9/30/14 (Grafteo, J.)
People v Vega	1st Dept: 116 AD3d 454 (Bronx)	denied 9/17/14 (Rivera, J.)
People v Wade	4th Dept: 118 AD3d 1370 (Wayne)	denied 9/30/14 (Grafteo, J.)
People v Wahhab	2d Dept: 118 AD3d 925 (Nassau)	denied 9/29/14 (Grafteo, J.)
People v Walker	2d Dept: 117 AD3d 886 (Queens)	denied 9/2/14 (Pigott, J.)
People v Ware (Jacob)	4th Dept: 117 AD3d 1554 (Niagara)	denied 9/17/14 (Read, J.)
People v Ware (Jacob)	4th Dept: 118 AD3d 1286 (Niagara)	denied 9/18/14 (Read, J.)
People v Washington	1st Dept: 115 AD3d 451 (Bronx)	granted 9/9/14 (Pigott, J.)
People v Waters (Keleik)	2d Dept: 119 AD3d 968 (Westchester)	denied 9/29/14 (Grafteo, J.)
People v Waters (Khaleik)	2d Dept: 119 AD3d 968 (Westchester)	denied 9/29/14 (Grafteo, J.)
People v Watson (Jamelle)	3d Dept: 115 AD3d 1016 (Albany)	denied 9/8/14 (Abdus-Salaam, J.)
People v Watson (Kyle)	App Div, 2d Dept: 2014 NY Slip Op 78484(U) (Westchester)	dismissed 9/29/14 (Lippman, Ch. J.)
People v Weaver	4th Dept: 118 AD3d 1270 (Orleans)	denied 9/23/14 (Pigott, J.)
People v Wilkins	3d Dept: 118 AD3d 1038 (Ulster)	denied 9/15/14 (Lippman, Ch. J.)
People v Williams	App Div, 4th Dept: 2014 NY Slip Op 76139(U) (Monroe)	dismissed 9/24/14 (Pigott, J.)

People v Wilson	2d Dept: 115 AD3d 891 (Kings)	denied 9/2/14 (Pigott, J.)
People v Witherspoon	2d Dept: 116 AD3d 800 (Suffolk)	denied 9/17/14 (Read, J.)
People v Wofford	4th Dept: 115 AD3d 1332 (Erie)	denied 9/8/14 (Abdus-Salaam, J.)
People v Woods	2d Dept: 115 AD3d 997 (Nassau)	denied 9/8/14 (Abdus-Salaam, J.)
People v Word	1st Dept: 43 AD3d 773 (NY)	denied reconsideration 9/29/14 (Lippman, Ch.J.)
People v Wright (Stanley)	4th Dept: 119 AD3d 1384 (Onondaga)	denied 9/23/14 (Pigott, J.)
People v Wright (Wilbur)	2d Dept: 119 AD3d 823 (Suffolk)	denied 9/29/14 (Grafteo, J.)
People v Yarborough	2d Dept: 119 AD3d 618 (Nassau)	denied 9/26/14 (Rivera, J.)
People v Young (Christopher)	4th Dept: 119 AD3d 1386 (Monroe)	dismissed 9/9/14 (Abdus-Salaam, J.) (Appeal Nos. 1 and 2)
People v Young (James)	2d Dept: 119 AD3d 880 (Kings)	denied 9/26/14 (Grafteo, J.)

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

Decisions of Appellate Division Justices*

(September 1, 2014 through September 30, 2014)

People v Cooke	App Div, 4th Dept: 119 AD3d 1399 (Steuben)	granted 9/18/14 (Fahey, J.)
People v Gross	App Div, 4th Dept: 118 AD3d 1383 (Wayne)	granted 9/18/14 (Lindley, J.)

[19 NE3d 491, 994 NYS2d 565]

JASON PELLETIER, Appellant, v BRITTANY LAHM et al., Respondents.

Decided October 16, 2014

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the Second Judicial Department, from an

* Includes only applications that were granted.

order of that Court, entered November 20, 2013. The Appellate Division affirmed a judgment of the Supreme Court, Rockland County (Margaret Garvey, J.) which was in favor of defendants and against plaintiff, dismissing the complaint. The judgment was entered upon a jury verdict in favor of defendants and against plaintiff on the issue of liability, and upon an order of that court (op 32 Misc 3d 1230[A], 2011 NY Slip Op 51504[U] [2011]) denying plaintiff's motion pursuant to CPLR 4404 (a) to set aside the verdict and for judgment as a matter of law on the issue of liability or, in the alternative, to set aside the verdict as contrary to the weight of the evidence and for a new trial. The following question was certified by the Appellate Division: "Was the decision and order of this Court dated November 20, 2013, properly made?"

Plaintiff passenger sought to recover damages for personal injuries he sustained arising out of an automobile accident which occurred when another passenger distracted defendant driver when he pulled the strings on her bikini top, thereby causing the top to fall and her breasts to be exposed. The Appellate Division concluded that the trial court properly charged the jury on the emergency doctrine, and that viewing the evidence in the light most favorably toward giving the requested emergency doctrine instruction to the jury, based upon defendant's testimony, there was a reasonable view of the evidence that her conduct was the product of a sudden and unexpected circumstance, since defendant's general awareness that the passenger had previously engaged in certain distracting conduct while in the car would not preclude a jury from deciding that defendant did not anticipate the precise distraction that precipitated the accident. Therefore, it was for the jury to find whether defendant was faced with a sudden and unforeseen emergency not of her own making and, if so, whether her response to the situation was that of a reasonably prudent person.

Pelletier v Lahm, 111 AD3d 807, affirmed.

HEADNOTE

Negligence — Emergency Doctrine — Jury to Determine if Sudden and Unforeseen Emergency Existed

In a personal injury action arising out of an automobile accident which occurred after defendant driver was distracted by a passenger, the Appellate Division did not err in concluding that the giving of the emergency doctrine charge was proper because it was for the jury to find whether defendant was faced with a sudden and unforeseen emergency not of her own making and, if so, whether her response to the situation was that of a reasonably prudent person.

APPEARANCES OF COUNSEL

Burke, Miele & Golden, LLP, Goshen (*Phyllis A. Ingram* of counsel), for appellant.

Hannum Feretic Prendergast & Merlino, LLC, New York City (*Matthew J. Zizzamia* of counsel), for respondents.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs, and the certified question not answered as unnecessary. The Appellate Division did not err in concluding that the giving of the emergency doctrine charge was proper because “[i]t was for the jury to find whether [defendant driver] was faced with a sudden and unforeseen emergency not of her own making and, if so, whether her response to the situation was that of a reasonably prudent person” (111 AD3d 807, 809 [2d Dept 2013]).

Concur: Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT, RIVERA and ABDUS-SALAAM.

[20 NE3d 637, 995 NYS2d 692]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOHN ROSSI, Appellant.

Argued September 9, 2014; decided October 16, 2014

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Second Judicial Department, from an order of that Court, entered October 17, 2012. The Appellate Division affirmed a judgment of the Nassau County Court (Meryl J. Berkowitz, J. at suppression hearing; Jerald S. Carter, J. at trial), which had convicted defendant, upon a jury verdict, of criminal possession of a weapon in the second degree.

People v Rossi, 99 AD3d 947, affirmed.

HEADNOTE

Crimes — Unlawful Search and Seizure — Emergency Doctrine — Mixed Question of Law and Fact

In a criminal prosecution, the issue of whether the warrantless search of defendant’s premises was lawful under the emergency doctrine involved a mixed question of law and fact that was beyond review by the Court of Appeals

because there was record support for the Appellate Division majority's conclusion that the search was lawful. The majority applied the test set forth in *People v Mitchell* (39 NY2d 173, 177-178 [1976], *cert denied* 426 US 953 [1976]) and found that defendant's incoherence and evasive answers, when questioned by police responding to a call that defendant had shot himself in the hand, about the location of the gun and the presence of children on the premises established an ongoing emergency and danger to life, justifying the search for and seizure of the gun.

APPEARANCES OF COUNSEL

Jillian S. Harrington, New York City, for appellant.

Kathleen M. Rice, District Attorney, Mineola (*Kevin C. King*, *Robert A. Schwartz* and *Laurie K. Gibbons* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

On July 11, 2009 at approximately 5:10 a.m., police officers arrived at defendant's residence in response to a 911 call initiated by defendant's wife, who reported that defendant had shot himself in the hand. She was unable to tell the officers the gun's whereabouts.

Two officers entered the residence and observed defendant standing at the end of a hallway, bleeding profusely from his hand. The officers drew their weapons and ordered defendant into the living room where one of the officers frisked him but found no weapon. Defendant's two children and a third child were in the residence. Although defendant said that he had been cleaning the gun when it discharged, he stated that he did not know where the gun was located. While an EMT was tending to defendant's wound, the officers searched the residence. A third officer began searching the backyard, eventually discovering a loaded gun near a shed. Defendant was charged with criminal possession of a weapon in the second degree (Penal Law § 265.03 [3]).

At the suppression hearing, defendant argued that the search of his premises was unconstitutional because by the time the gun was discovered, the scene was secure and the emergency had ended. The People countered that the testimony established that for the protection of the children who may have come across the gun, the officers needed to secure it and did so contemporaneously with escorting the children from the residence. The suppression court ruled that the warrantless search for and recovery of the gun were lawful. After a jury trial, defendant

was convicted as charged and, on appeal, challenged, among other things, the suppression ruling.

A divided Appellate Division affirmed (99 AD3d 947 [2d Dept 2012]). The majority determined that “defendant’s incoherence and evasive answers about the location of the gun and the presence of children on the premises . . . established an ongoing emergency and danger to life, justifying the search for and seizure of the gun” (*id.* at 950 [citations omitted]). The court further concluded that the suppression testimony established that the officer searching the backyard was aware that other officers were searching the residence but “was not aware that the children were secure and out of danger” (*id.*). The dissenting Justice asserted that although the initial entry into the house was justified in light of the information that defendant had shot himself and that emergency was extended when the officers learned that there were children in the house, “once the police frisked the defendant and knew that the children did not have the gun, the emergency abated” (*id.* at 953 [Chambers, J., dissenting]). The dissenting Justice granted defendant leave to appeal.

Application of the “emergency doctrine” involves a mixed question of law and fact that is beyond this Court’s review so long as there is record support for the findings of the courts below (*see People v Doll*, 21 NY3d 665, 671 [2013], *rearg denied* 22 NY3d 1053 [2014], *cert denied* 572 US —, 134 S Ct 1552 [2014]; *People v McBride*, 14 NY3d 440, 446 [2010], *cert denied* 562 US 931 [2010]). The Appellate Division majority and dissent both applied the test set forth in *People v Mitchell* (39 NY2d 173, 177-178 [1976], *cert denied* 426 US 953 [1976]) and reached conflicting conclusions as to when the emergency ceased. Because there is record support for the majority’s conclusion that the search was lawful under the emergency exception, “‘any further review is beyond this Court’s jurisdiction’ ” (*People v Dallas*, 8 NY3d 890, 891 [2007], quoting *People v Molnar*, 98 NY2d 328, 335 [2002]).

Defendant’s remaining contentions that his conviction was not based upon legally sufficient evidence and that prosecutorial misconduct deprived him of a fair trial are unpreserved. His claim of ineffective assistance of counsel is without merit.

Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT, RIVERA and ABDUS-SALAAM concur.

Order affirmed, in a memorandum.

[21 NE3d 198, 996 NYS2d 569]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DIANE
WELLS, Appellant.

Argued September 11, 2014; decided October 16, 2014

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Term of the Supreme Court in the First Judicial Department, entered August 14, 2012. The Appellate Term (1) reversed, on the law, an order of the Criminal Court of the City of New York, New York County (Michael J. Yavinsky, J.), which had granted defendant's motion to dismiss the accusatory instrument pursuant to CPL 30.30; (2) denied defendant's motion; and (3) reinstated the accusatory instrument.

People v Wells, 36 Misc 3d 144(A), 2012 NY Slip Op 51544(U), reversed.

HEADNOTES

Crimes — Right to Speedy Trial — Delay Following Denial by Court of Appeals of Leave to Appeal Order of Intermediate Appellate Court

1. For speedy trial purposes, the entire period of Criminal Court's adjournment of defendant's case for control purposes because of the pendency of the People's application for leave to appeal to the Court of Appeals from the Appellate Term order reversing defendant's judgment of conviction and remanding the matter for a new trial was not automatically excludable under CPL 30.30 (4) (a) as time resulting from the appeal. A new criminal action commenced when the People's application for leave was denied, and the People were required to be ready for trial within 90 days, but the adjourned calendar date occurred beyond the 90-day period. The mere lapse of time, following the date on which the order occasioning a retrial becomes final, does not in itself constitute a reasonable period of delay resulting from an appeal within the meaning of CPL 30.30 (4) (a). Inasmuch as the People provided no justification for any "reasonable period of delay" under CPL 30.30 (4) (a) to be added to the 90 days provided under CPL 30.30 (1) (b), Criminal Court properly granted defendant's motion to dismiss the accusatory instrument on speedy trial grounds.

Crimes — Right to Speedy Trial — Delay Following Denial by Court of Appeals of Leave to Appeal Order of Intermediate Appellate Court

2. To the extent *People v Vukel* (263 AD2d 416 [1st Dept 1999], *lv denied* 94 NY2d 830 [1999]) held that when a trial court orders an adjournment for control purposes because of the pendency of a defendant's application for leave to appeal to the Court of Appeals, the entire period of the adjournment is excludable under CPL 30.30 (4) (a) as time resulting from the appeal, it should not be followed.

APPEARANCES OF COUNSEL

Seymour W. James, Jr., The Legal Aid Society, New York City (*Andrew C. Fine* of counsel), and *Law Offices of Gerald L. Shargel, LLP*, New York City (*Gerald L. Shargel* and *Ross M. Kramer* of counsel), for appellant.

Cyrus R. Vance, Jr., District Attorney, New York City (*David M. Cohn* and *Hilary Hassler* of counsel), for respondent.

OPINION OF THE COURT**MEMORANDUM.**

The order of the Appellate Term should be reversed and the order of Criminal Court of the City of New York reinstated.

In October 2006, defendant was convicted of assault in the third degree in Criminal Court of the City of New York but, in March 2010, the Appellate Term reversed the judgment due to an improper jury charge, and remanded the case for a new trial (26 Misc 3d 143[A], 2010 NY Slip Op 50393[U] [App Term, 1st Dept 2010]). The People then sought leave to appeal to this Court.

On May 10, 2010, while the People's application for leave to appeal was still pending, Criminal Court adjourned defendant's case until June 21. An assistant district attorney was present at the adjournment. A Judge of this Court denied the People's leave application on May 14, 2010 (14 NY3d 894 [2010]).

Because of a clerical error in Criminal Court, defendant's case was not placed on the June 21, 2010 calendar, and no representative of the District Attorney was present in court on that date. Once the District Attorney's office discovered the miscalculation in July, and informed Criminal Court, a new calendar date of August 23, 2010 was set. At no time prior to that did the People declare themselves ready for trial.

On August 23, defendant moved to dismiss the accusatory instrument on speedy trial grounds, pursuant to CPL 170.30 (1) (e), arguing that more than 90 days had elapsed since the denial of leave to appeal to this Court. Criminal Court granted defendant's motion to dismiss, concluding after a fact-finding hearing "that there was unexplained and unexcused prosecutorial inaction with this case" that "lasted longer than the statutory speedy trial time allotted."

The Appellate Term reversed, holding that the People had no obligation to advance the case to an earlier date upon receiving the certificate denying leave (36 Misc 3d 144[A], 2012 NY Slip

Op 51544[U] [App Term, 1st Dept 2012]). A Judge of this Court granted defendant leave to appeal. We now reverse.

CPL 170.30 (1) is clear. A motion made pursuant to that section must be granted if the People are not “ready for trial within . . . ninety days of the commencement of a criminal action wherein a defendant is accused of one or more offenses, at least one of which is a misdemeanor punishable by a sentence of imprisonment of more than three months and none of which is a felony” (CPL 30.30 [1] [b]). When a defendant’s judgment of conviction is reversed and the case is sent back for a retrial, “the criminal action . . . must be deemed to have commenced on . . . the date the order occasioning a retrial becomes final” (CPL 30.30 [5] [a]).

The parties do not dispute that under CPL 30.30 (5) (a) a new criminal action commenced when a Judge of this Court denied the People leave to appeal from the Appellate Term’s order. The People point to the fact that, under the Criminal Procedure Law, “[i]n computing the time within which the people must be ready for trial . . . a reasonable period of delay resulting from other proceedings concerning the defendant, including but not limited to: . . . *appeals*; . . . and the period during which such matters are under consideration by the court” must be excluded (CPL 30.30 [4] [a] [emphasis added]).

The People contend therefore that the period from May 10, 2010 to August 23, 2010 is excludable, relying on *People v Vukel* (263 AD2d 416 [1st Dept 1999], *lv denied* 94 NY2d 830 [1999]), which held that when a trial court orders an adjournment for control purposes because of the pendency of a defendant’s application for leave to appeal to this Court, the entire period of the adjournment is excludable under CPL 30.30 (4) (a), as time resulting from the appeal. In *Vukel*, the Appellate Division rejected the argument that the People have “an obligation to advance the case to an earlier date upon receiving the certificate denying leave” (*id.* at 417).

[1, 2] The mere lapse of time, following the date on which the order occasioning a retrial becomes final, does not in itself constitute a reasonable period of delay resulting from an appeal within the meaning of CPL 30.30 (4) (a). Otherwise, the People would be permitted to delay retrial for the duration of an adjournment in the trial court, no matter how lengthy, even after a Judge of our Court has denied leave to appeal, without consequence under CPL 30.30. Such a rule would be inconsistent with “the dominant legislative intent informing CPL 30.30,

namely, to discourage prosecutorial inaction” (*People v Price*, 14 NY3d 61, 64 [2010]). To the extent *Vukel* holds otherwise, it should not be followed.

Here, the Appellate Term erred as a matter of law in ruling that the period from May 10, 2010 to August 23, 2010 was automatically excludable as time resulting from an appeal under CPL 30.30 (4) (a). We agree with Criminal Court that the People provided no justification on the record for any “reasonable period of delay” under CPL 30.30 (4) (a) to be added to the 90 days provided under CPL 30.30 (1) (b).

Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT, RIVERA and ABDUS-SALAAM concur.

Order reversed and the order of Criminal Court of the City of New York reinstated, in a memorandum.

AMALGAMATED BANK, Respondent, v HELMSLEY-SPEAR, INC., Defendant, and SCHNEIDER & SCHNEIDER, INC., et al., Intervenor-Appellants.

Submitted June 9, 2014; decided October 16, 2014

Reported below, 109 AD3d 418.

Motion to vacate this Court’s May 29, 2014 dismissal order granted [*see* 23 NY3d 959 (2014)].

KELLY ASHMORE, Respondent, v BENJAMIN ASHMORE, Appellant.

Decided October 16, 2014

Reported below, 2014 NY Slip Op 75302(U).

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of C., an Applicant for Admission to the Bar of the State of New York, Appellant.

Decided October 16, 2014

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of the Claim of TADIA R. GODDARD, Respondent.
SUMMIT HEALTH, INC., Appellant; COMMISSIONER OF LABOR,
Respondent.

Submitted August 18, 2014; decided October 16, 2014

Reported below, 118 AD3d 1200.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of ANTHONY J. HENSEL, Appellant, v CITY OF UTICA
et al., Respondents.

Submitted August 18, 2014; decided October 16, 2014

Reported below, 115 AD3d 1217.

Motion for reargument of motion for leave to appeal denied [*see* 23 NY3d 908 (2014)]. Motion for poor person relief dismissed as academic.

In the Matter of NATHANIEL JAY, Appellant, v BRIAN FISCHER, as
Commissioner of Corrections and Community Supervision,
Respondent.

Decided October 16, 2014

Reported below, 118 AD3d 1364.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

PETER A. LEIDEL et al., Appellants, v JOHN P. ANNICELLI, Doing Business as OLD STONE HILL ROAD ASSOCIATES, et al., Respondents.

Submitted July 28, 2014; decided October 16, 2014

Reported below, 114 AD3d 536.

Motion for leave to appeal dismissed upon the ground that the Appellate Division order sought to be appealed from does not finally determine the action within the meaning of the Constitution and the stipulation does not qualify as a final judgment within the meaning of CPLR 5602 (a) (1) (ii) to bring up for review the prior nonfinal Appellate Division order because it was entered into without prejudice.

SUARNA MEHULIC, Appellant, v NEW YORK DOWNTOWN HOSPITAL, Respondent.

Submitted March 10, 2014; decided October 16, 2014

Reported below, 113 AD3d 567.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

SUARNA MEHULIC, Appellant, v NEW YORK DOWNTOWN HOSPITAL, Respondent.

Submitted March 31, 2014; decided October 16, 2014

Reported below, 113 AD3d 567.

Motion for a stay dismissed as academic.

In the Matter of NEW YORK CITY ASBESTOS LITIGATION.

DORIS KAY DUMMITT, Individually and as Executrix of RONALD DUMMITT, Deceased, Respondent, v A.W. CHESTERTON et al., Defendants, and CRANE Co., Appellant.

Submitted October 20, 2014; decided October 16, 2014

Reported below, 121 AD3d 230.

Motion by Business Council of New York State et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed.

In the Matter of NOEL OLMOSPerez, Appellant, v ANDREA W. EVANS, as Chair of the Board of Parole, Respondent.

Submitted October 6, 2014; decided October 16, 2014

Reported below, 114 AD3d 1077.

Motion for assignment of counsel denied.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v NUGENE AMBERS, Appellant.

Submitted October 6, 2014; decided October 16, 2014

Reported below, 115 AD3d 671.

Motion for assignment of counsel granted and Lynn W.L. Fahy, Esq., Appellate Advocates, 111 John Street, 9th Floor, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOSE MARTINEZ BAXIN, Appellant.

Submitted October 14, 2014; decided October 16, 2014

Reported below, 116 AD3d 628.

Motion for poor person relief granted.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v DWIGHT R. DeLEE, Respondent.

Submitted October 6, 2014; decided October 16, 2014

Reported below, 108 AD3d 1145.

Motion by New York State Association of Criminal Defense Lawyers et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v EVERETT M. DURANT, Appellant.

Submitted September 29, 2014; decided October 16, 2014

Reported below, 112 AD3d 1366.

Motion for assignment of counsel granted and Timothy P. Donaher, Esq., Monroe County Public Defender, 10 N. Fitzhugh Street, Rochester, New York 14614 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v PETTIS HARDY, Appellant.

Submitted October 14, 2014; decided October 16, 2014

Reported below, 115 AD3d 511.

Motion for assignment of counsel granted and Richard M. Greenberg, Esq., Office of the Appellate Defender, 11 Park Place, Suite 1601, New York, NY 10007 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TODD R. HEATLEY, Appellant.

Submitted September 22, 2014; decided October 16, 2014

Reported below, 116 AD3d 23.

Motion for assignment of counsel granted and David M. Abbatoy, Jr., care of The Abbatoy Law Firm, PLLC, 339 East Ave., Suite 300, Rochester, New York 14606 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MARK JURGINS, Appellant.

Submitted October 14, 2014; decided October 16, 2014

Reported below, 107 AD3d 595.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 120 Wall Street, 28th Floor, New York, NY 10005 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JULIO NEGRON, Appellant.

Submitted October 14, 2014; decided October 16, 2014

Reported below, 112 AD3d 741.

Motion for assignment of counsel granted and Joel B. Rudin, Esq., care of Law Offices of Joel B. Rudin, 600 Fifth Ave., 10th Floor, New York, NY 10020 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v VINOD PATEL, Respondent.

Submitted September 2, 2014; decided October 16, 2014

Reported below, 97 AD3d 701.

Motion for reargument denied [*see* 23 NY3d 605 (2014)].

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v LUCIANO ROSARIO, Appellant.

Submitted October 6, 2014; decided October 16, 2014

Reported below, 2014 NY Slip Op 66337(U).

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 120 Wall Street, 28th Floor, New York, NY 10005 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v KAREEM WASHINGTON, Appellant.

Submitted September 29, 2014; decided October 16, 2014

Reported below, 115 AD3d 451.

Motion for assignment of counsel granted and Richard M. Greenberg, Esq., Office of the Appellate Defender, 11 Park Place, Suite 1601, New York, NY 10007 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. DAVID LOYD,
Appellant, v JOHN R. DEMARS, Respondent.

Decided October 16, 2014

Appeal transferred, without costs, by the Court of Appeals, sua sponte, to the Appellate Division, Third Department, upon the ground that a direct appeal does not lie when questions other than the constitutional validity of a statutory provision are involved (*see* NY Const, art VI, §§ 3 [b] [2]; 5 [b]; CPLR 5601 [b] [2]).

THE PEOPLE OF THE STATE OF NEW YORK ex rel. GARY H. MOORE,
Appellant, v SUPERINTENDENT OF COXSACKIE CORRECTIONAL
FACILITY, Respondent.

Decided October 16, 2014

Reported below, 2014 NY Slip Op 79870(U).

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of CARLOS RODRIGUEZ, Appellant, v BARBARA G.
ZAMBELLI, Respondent.

Submitted August 18, 2014; decided October 16, 2014

Reported below, 119 AD3d 696.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied. Motion for poor person relief dismissed as academic.

In the Matter of MARY VERONICA SANTIAGO-MONTEVERDE,
Debtor.

MARY VERONICA SANTIAGO-MONTEVERDE, Appellant, v JOHN S.
PEREIRA, Chapter 7 Trustee, Respondent.

Submitted September 29, 2014; decided October 16, 2014

See 747 F3d 153.

Motion by City of New York for leave to file a brief amicus curiae on consideration of the certified question herein granted and the proposed brief is accepted as filed.

In the Matter of MARK S. WALLACH, as Chapter 7 Trustee for
NORSE ENERGY CORP. USA, Appellant, v TOWN OF DRYDEN
et al., Respondents.

Submitted September 8, 2014; decided October 16, 2014

Reported below, 108 AD3d 25.

Motion for reargument denied with \$100 costs and necessary reproduction disbursements [*see* 23 NY3d 728 (2014)].

[20 NE3d 987, 996 NYS2d 207]

In the Matter of ERIC SMITH, Respondent, v RICHARD A. BROWN,
Appellant, et al., Respondents.

Argued September 17, 2014; decided October 21, 2014

SUMMARY

APPEAL, on constitutional grounds, from a judgment of the Appellate Division of the Supreme Court in the Second Judicial Department, entered April 17, 2013, in a proceeding pursuant to CPLR article 78. The Appellate Division granted the petition, on the law, and prohibited respondents from retrying petitioner in the criminal action entitled *People v Smith*, pending under Queens County indictment No. 1075/09.

Matter of Smith v Brown, 105 AD3d 965, reversed.

HEADNOTE

**Limitation of Actions — Four-Month Statute of Limitations —
Proceeding in Nature of Prohibition — Proceeding to Prevent
Criminal Retrial Following Declaration of Mistrial**

A petition in a CPLR article 78 proceeding to prohibit the criminal retrial of petitioner, whose first trial ended in a mistrial, was untimely where it was filed more than two years after the mistrial was declared. A four-month limitations period applies to CPLR article 78 prohibition proceedings (*see* CPLR 217 [1]), and although a tolling period for continuing harm has been recognized, its application was inappropriate here. Once the People definitively demonstrated their intent to re-prosecute petitioner and the court began to calendar the case for eventual trial, petitioner was obligated to initiate his double jeopardy-based article 78 challenge within the statutorily prescribed time frame.

APPEARANCES OF COUNSEL

Richard A. Brown, District Attorney, Kew Gardens (Jill A. Gross-Marks and John M. Castellano of counsel), for appellant.

Patrick Michael Megaro, Uniondale, for respondent.

OPINION OF THE COURT**MEMORANDUM.**

The order of the Appellate Division should be reversed, without costs, and the petition dismissed.

Petitioner Eric Smith was charged with weapon possession after the police stopped him for a traffic infraction and discovered that he was carrying a loaded handgun. During jury deliberations, two jurors sent a note to the court reporting that juror 11 had recounted to the entire jury “a conversation he had with a lawyer friend regarding hypothetical cases involving a gun.” After the three jurors were questioned, the court dismissed juror 11 with the consent of defense counsel and the prosecutor.

Following a short recess, the prosecutor requested that a mistrial be declared because only 11 jurors remained. Defense counsel opposed a mistrial and asserted that deliberations could continue with 11 jurors, relying on *People v Gajadhar* (9 NY3d 438 [2007]). The court declined to proceed with fewer than 12 jurors and granted a mistrial, finding that “the very heart and integrity of the jury process has been compromised by the juror misconduct in this case.”

The People sought to prosecute Smith again and the case was adjourned repeatedly for more than two years. When the trial date finally arrived, the case was again postponed because Smith had commenced this CPLR article 78 prohibition proceeding in the Appellate Division. He claimed that the Double Jeopardy Clause barred a retrial because deliberations could have continued with 11 jurors under *Gajadhar* and there was no “manifest necessity” demanding a mistrial. The People responded that the article 78 petition was untimely because it was filed more than four months after the mistrial had been declared.

The Appellate Division held that the proceeding had been timely commenced under a “continuing harm” theory and granted the writ of prohibition (*see* 105 AD3d 965 [2d Dept 2013]). The court concluded that the declaration of a mistrial was an abuse of discretion because the trial court did not consider alternative remedies, such as continuing the proceed-

ings with an 11-member jury; asking the jurors about their ability to remain impartial; or issuing a curative instruction to cure the taint.

We now reverse. A four-month limitations period applies to CPLR article 78 prohibition proceedings (*see* CPLR 217 [1]; *see e.g. Matter of Holtzman v Marrus*, 74 NY2d 865, 866 [1989]) and the petition here was filed more than two years after the mistrial was declared. Although a tolling period for continuing harm has been recognized (*see e.g. Matter of Johnson v Carro*, 24 AD3d 140, 141 [1st Dept 2005], *lv denied* 7 NY3d 704 [2006]; *Taub v Committee on Professional Stds. for Third Jud. Dept.*, 200 AD2d 74, 77-78 [3d Dept 1994]) and would be adopted by our concurring colleague, we reject its application in this situation. Once the People definitively demonstrated their intent to re-prosecute and the court began to calendar the case for eventual trial, Smith was obligated to initiate his double jeopardy-based article 78 challenge within the statutorily prescribed time frame. On the facts of this case, that period expired well before prohibition was sought, and therefore, the proceeding was barred by the statute of limitations.

Chief Judge LIPPMAN (concurring in result). I cannot agree with the majority that the petition is untimely. I concur in the result as I also believe that the Appellate Division order should be reversed and the petition dismissed, but I reach that result on the merits.

The majority implicitly rejects respondent's contention that the statute of limitations starts to run on the date the trial court declares a mistrial. Presumably they do so on the basis that the declaration of mistrial is not a "final and binding" decision to retry the defendant in the criminal case (CPLR 217 [1]; *Matter of Holtzman v Marrus*, 74 NY2d 865 [1989]; *Matter of Edmead v McGuire*, 67 NY2d 714 [1986]).

The majority apparently concludes the determination became final and binding "[o]nce the People definitively demonstrated their intent to re-prosecute and the court began to calendar the case for eventual trial" (majority mem at 983). This test is at best uncertain and can only engender unnecessary, protracted litigation on a preliminary issue.

Here, for example, the People repeatedly adjourned the proceedings. The People could have dropped the charges at any time, which would have terminated the possibility of a retrial. The parties were in a holding pattern for over two years.

In any event, there is no reason to bar as untimely a CPLR article 78 petition raising a double jeopardy claim prior to

retrial. The majority requires petitioner to go through retrial, conviction, and appeal in order to raise this double jeopardy claim.

I would adopt the holding of the Appellate Division in *Matter of Johnson v Carro* (24 AD3d 140, 141 [1st Dept 2005], *lv denied* 7 NY3d 704 [2006]) that respondent's assertion of authority to retry petitioner is a continuing wrong. The nature of prohibition proceedings, that they address "whether [a] body or officer proceeded, is proceeding or is about to proceed without or in excess of jurisdiction" (*Matter of Town of Huntington v New York State Div. of Human Rights*, 82 NY2d 783, 786 [1993] [internal quotation marks and citation omitted]), calls into question "the very applicability of the four-month statute of limitations" of CPLR 217 (1) (Siegel, NY Prac § 566 at 1006 [5th ed 2011]). Unlike article 78 proceedings based on certiorari or mandamus, a prohibition proceeding "is one that implies a lack of jurisdiction on the part of the respondent that would presumably be a continuing one—it can be argued that the four months may be measured from any point during the jurisdiction's continued exercise" (Siegel, NY Prac § 566 at 1006 [5th ed 2011]).

Nonetheless, petitioner is not entitled to a writ of prohibition since, on the merits, the trial court properly declared a mistrial based on manifest necessity. The jury in this case was thoroughly tainted by gross misconduct justifying mistrial. While the jury panel was focusing on whether the evidence showed "possession of a gun," juror 11 told the panel "the only thing that we should focus on is whether we believe that the gun was in the car or not." Juror 11 obtained this advice from his lawyer friend whom he had called the previous night to discuss a "hypothetical situation concerning a gun." Jurors 7 and 12 sent a note to the court reporting that juror 11 had recounted this to the entire jury. Juror 12 indicated to the court that she was angry about what occurred and uncomfortable with juror 11's behavior. Juror 11 then admitted his misconduct. Rejecting defense counsel's request to poll the remaining jury members as to their impartiality, as is the normal course, the court emphasized that juror 11's actions went "above and beyond" usual misconduct because his disclosure of the lawyer's advice on an integral issue to the case had "tainted" and "compromised" the "absolute integrity of the jury process" and irreparably infected the entire jury. The court was "absolutely satisfied" that "the very heart and integrity of the jury process ha[d] been compromised,"

resulting in an incurable taint to the entire trial. Under the circumstances, it cannot be said that the trial court abused its discretion in declaring a mistrial (*see Matter of Rivera v Firetog*, 11 NY3d 501, 507 [2008], *cert denied* 556 US 1193 [2009]; *Matter of Enright v Siedlecki*, 59 NY2d 195, 200 [1983]).

Judges GRAFFEO, READ, SMITH, PIGOTT, RIVERA and ABDUS-SALAAM concur; Chief Judge LIPPMAN concurs in result in an opinion.

Order reversed, without costs, and petition dismissed, in a memorandum.

[21 NE3d 207, 996 NYS2d 578]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v THOMAS HORTON, Appellant.

Argued September 16, 2014; decided October 21, 2014

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Wayne County Court (John B. Nesbitt, J.), entered February 2, 2013. The County Court affirmed a judgment of the Justice Court of the Town of Galen, Wayne County (Lester W. Carr, Sr., J.), which had convicted defendant, upon a jury verdict, of tampering with a witness in the fourth degree.

HEADNOTE

Crimes — Tampering with Witness — Sufficiency of Evidence

In a prosecution for tampering with a witness in the fourth degree (Penal Law § 215.10) arising out of defendant's "outing" of a confidential informant on the Internet and making statements denouncing "snitches," the evidence, seen in the light most favorable to the People, was sufficient to establish that defendant knew that the confidential informant might testify in a proceeding, and that he wrongfully sought to stop her from doing so. After learning about the arrest of an acquaintance on drug charges and the confidential informant's role as a witness against the acquaintance and, potentially, himself, defendant, who had brought the acquaintance and the informant together, immediately posted communications on the Internet that the jury might have reasonably inferred were coded threats that were intended to induce the confidential informant not to testify. In addition to the public postings, defendant was in contact with the confidential informant and her mother.

APPEARANCES OF COUNSEL

Tyson Blue, Macedon, for appellant.

Richard M. Healy, District Attorney, Lyons (*Christopher Bokelman* of counsel), for respondent.

OPINION OF THE COURT**MEMORANDUM.**

The order of the County Court should be affirmed.

In June of 2010, investigators in the Wayne County Sheriff's Office planned a controlled, recorded drug purchase. The investigators recruited a young woman (hereafter, the confidential informant) to make the actual buy. She was wired with a microphone, and a camera was concealed in the back seat of her car. On June 10th, she arranged a meeting, apparently with defendant Thomas Horton, and drove to a parking lot to rendezvous with him. When defendant arrived, he was accompanied by another man, Clarence Jackson, who sold the confidential informant a quantity of cocaine, a transaction captured by the hidden camera and recorded by the wire.

On or about April 21, 2011, Jackson was arrested and charged with sale of a controlled substance. That same day, he went to defendant's house with a copy of the videotape; Jackson explained that he had just been arrested for the sale and that he planned to take a plea. Later that day, the confidential informant contacted one of the investigators who had worked with her on the buy to report that defendant had begun "outing" her on Facebook. In addition to identifying her as an informant, defendant uploaded a clip of the surveillance video to the website YouTube, and provided a link to it on his Facebook page. The video spawned a flurry of discussion and recriminations from defendant and his Facebook friends. Many statements were made by defendant and others denouncing snitches in general and the confidential informant specifically, including warnings that "Snitches get stitches" and "I hope she gets what's coming to her."

On April 25, 2011, defendant was arrested for fourth-degree witness tampering, which provides, as relevant, that

"[a] person is guilty of tampering with a witness when, knowing that a person is or is about to be called as a witness in an action or proceeding, (a) he wrongfully induces or attempts to induce such person to absent himself from, or otherwise to avoid or seek to avoid appearing or testifying at, such action or proceeding" (Penal Law § 215.10).

On June 27, 2011, defendant was tried by jury in Town Court and convicted as charged; he was sentenced to one year in

Wayne County jail. Defendant appealed to County Court, arguing that there was insufficient evidence that he attempted to prevent the confidential informant from testifying, or that he had any knowledge that she would testify in any proceeding.

County Court affirmed. The judge noted that defendant's best friend, Jackson, was charged with a drug sale, and knew that the confidential informant had worked with police to secure the charge; that defendant made Facebook posts identifying the confidential informant; and that the confidential informant was able to see these posts and the comments from other Facebook users that the posts generated. A Judge of this Court granted defendant leave to appeal (21 NY3d 1074 [2013]), and we now affirm.

The evidence, seen in the light most favorable to the People, is sufficient to establish that defendant knew that the confidential informant might testify in a proceeding, and that he wrongfully sought to stop her from doing so. After learning about Jackson's arrest and the confidential informant's role as a witness against Jackson and, potentially, himself, defendant immediately posted communications on the Internet that the jury might have reasonably inferred were coded threats that were intended to induce the confidential informant not to testify. And in addition to the public postings on Facebook and YouTube, defendant was in contact via Facebook messages (which essentially act as email on the website) with the confidential informant and her mother.

Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT, RIVERA and ABDUS-SALAAM concur.

Order affirmed, in a memorandum.

HASSAN O.G. ALAMIN, Appellant, v SHAKE UDDIN et al., Respondents.

Decided October 21, 2014

Reported below, 113 AD3d 708; 2014 NY Slip Op 73169(U).

Appeal, insofar as taken from the January 2014 Appellate Division order, dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that it is untimely (*see* CPLR 5513 [a]); appeal, insofar as taken from the May 2014 Appellate Division order, dismissed, without costs, by the Court of Ap-

peals, sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of ROBERT BUTLER et al., Appellants, v CITY OF RYE PLANNING COMMISSION et al., Respondents.

Submitted August 18, 2014; decided October 21, 2014

Reported below, 114 AD3d 937.

Motion, insofar as it seeks leave to appeal from the February 2014 Appellate Division order, dismissed upon the ground that it does not lie, appellants having previously moved in the Court of Appeals for leave to appeal (23 NY3d 984 [2014]) from the same Appellate Division order from which they currently seek leave to appeal (*see Selinger v Selinger*, 90 NY2d 842 [1997]); motion, insofar as it seeks leave to appeal from the May 2014 Supreme Court judgment, dismissed upon the ground that no motion for leave to appeal lies therefrom (*see CPLR 5602; Ja-joute v New York City Health & Hosps. Corp.*, 92 NY2d 941 [1998]).

Judge RIVERA taking no part.

In the Matter of ANTONIO COLE, Appellant, v NICHOLAS DeROSA, Respondent.

Submitted August 25, 2014; decided October 21, 2014

Reported below, 113 AD3d 765.

Motion to vacate this Court's July 15, 2014 dismissal order granted [*see* 23 NY3d 1032 (2014)]. On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved.

In the Matter of the Foreclosure of Tax Liens by the COUNTY OF ULSTER, Appellant; ERED ENTERPRISES, INC., Respondent.

Submitted September 2, 2014; decided October 21, 2014

Reported below, 121 AD3d 111.

Motion for leave to appeal dismissed upon the ground that

the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of DAVID M. WESTCHESTER COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; SONIA M.-C. et al., Appellants.

Submitted September 8, 2014; decided October 21, 2014

Reported below, 119 AD3d 800.

Motions for leave to appeal denied. Motions for poor person relief dismissed as academic. Motion by Willie H. for a stay dismissed as academic.

MORGAN DELIJANI, Respondent, v PARHAM DELIJANI, Defendant.
SEAN SABETI, Nonparty Appellant.

Submitted September 2, 2014; decided October 21, 2014

Reported below, 107 AD3d 930.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

INTERNATIONAL SHOPPES, INC., et al., Respondents, v ARLEIGH SPENCER, Appellant.

Submitted September 2, 2014; decided October 21, 2014

Reported below, 2012 NY Slip Op 61099(U).

Motion for leave to appeal dismissed upon the ground that it does not lie (*see* CPLR 5602).

MICHAEL A. LAWLER, Respondent, v KST HOLDINGS CORPORATION et al., Defendants, and KEVIN S. TAILLIE, Appellant.

Submitted August 18, 2014; decided October 21, 2014

Reported below, 115 AD3d 1196.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of the ESTATE OF HERNANDO MOODY, Deceased, Respondent, v QUALITY STRUCTURES, INC., et al., Appellants. WORKERS' COMPENSATION BOARD, Respondent.

Submitted September 2, 2014; decided October 21, 2014

Reported below, 117 AD3d 1212.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

NATIONAL UNION FIRE INSURANCE COMPANY OF PITTSBURGH, PENNSYLVANIA, et al., Appellants, et al., Plaintiffs, v TRANS-CANADA ENERGY USA, INC., et al., Respondents. (And Another Action.)

Submitted August 18, 2014; decided October 21, 2014

Reported below, 119 AD3d 492.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

Chief Judge LIPPMAN taking no part.

NATIONAL UNION FIRE INSURANCE COMPANY OF PITTSBURGH, PENNSYLVANIA, et al., Appellants, et al., Plaintiffs, v TRANS-CANADA ENERGY USA, INC., et al., Respondents. (And Another Action.)

Submitted September 8, 2014; decided October 21, 2014

Reported below, 119 AD3d 492.

Motion to vacate stay and for other relief denied.

Chief Judge LIPPMAN taking no part.

IOANNIS PIPINIAS, Respondent, v J. SACKARIS & SONS, INC., Defendant, and LAWRENCE MIRRO, Appellant.

Submitted September 2, 2014; decided October 21, 2014

Reported below, 116 AD3d 749.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of R. RODNEY WASHINGTON, a Suspended Attorney,
Appellant.

Decided October 21, 2014

Reported below, 2014 NY Slip Op 74443(U).

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of JAMES ARGENTINA, Appellant, v ALBERT PRACK,
as Director of Special Housing and Inmate Disciplinary
Programs, Respondent.

Submitted September 8, 2014; decided October 23, 2014

Reported below, 117 AD3d 1297.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]). Motion for poor person relief dismissed as academic.

ANTHONY BRANHAM, SR., Appellant, v R.V. AMBULETTE, INC., et
al., Respondents.

Submitted September 2, 2014; decided October 23, 2014

Reported below, 113 AD3d 531.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

DONNA B. CLARK, Appellant, v FARMERS NEW CENTURY INSUR-
ANCE COMPANY, Sued Herein as FARMERS INSURANCE COM-
PANY, Respondent.

Submitted September 15, 2014; decided October 23, 2014

Reported below, 117 AD3d 1208; 2014 NY Slip Op 78186(U); 2013 NY Slip Op 74815(U), 2013 NY Slip Op 64740(U).

Motion, insofar as it seeks leave to appeal from the May 2014 Appellate Division order, denied; motion for leave to appeal from the remaining orders is otherwise dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain it (*see* NY Const, art VI, § 3 [b]; CPLR 5602). Motion for poor person relief dismissed as academic.

MICHAEL FASOLO et al., Appellants, v JOSEPH A. SCARAFILE, Respondent.

Submitted September 15, 2014; decided October 23, 2014

Reported below, 120 AD3d 929.

Motion, insofar as it seeks leave to appeal from that portion of the August 2014 Appellate Division order affirming so much of Supreme Court's order as granted the motion to dismiss the complaint, denied; motion for leave to appeal otherwise dismissed upon the ground that the remainder of the August 2014 Appellate Division order does not finally determine the action within the meaning of the Constitution.

MOUNT SINAI HOSPITAL, as Assignee of Alison Cassani, Respondent, v DUST TRANSIT, INC., Appellant.

Submitted September 15, 2014; decided October 23, 2014

Reported below, 104 AD3d 823.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]; 2103 [b] [2]).

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v SCOTT BARDEN, Appellant.

Submitted October 20, 2014; decided October 23, 2014

Reported below, 117 AD3d 216.

Motion for assignment of counsel granted and Richard M. Greenberg, Esq., Office of the Appellate Defender, 11 Park Place, Suite 1601, New York, NY 10007 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RASHID
BILAL, Appellant.

Submitted October 20, 2014; decided October 23, 2014

Reported below, 118 AD3d 448.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 120 Wall Street, 28th Floor, New York, NY 10005 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ROBERT
J. COOKE, Appellant.

Submitted October 20, 2014; decided October 23, 2014

Reported below, 119 AD3d 1399.

Motion for assignment of counsel granted and Mary P. Davison, Esq., care of Davison Law Office, 61 North Main St., Suite C, PO Box 652, Canandaigua, New York 14424 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ROBERT
PEALER, Appellant.

Submitted September 29, 2014; decided October 23, 2014

Reported below, 89 AD3d 1504.

Motion for reargument denied [*see* 20 NY3d 447 (2013)].

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CHRIS-
TOPHER E. WALKER, Appellant.

Submitted October 20, 2014; decided October 23, 2014

Reported below, 114 AD3d 1134.

Motion for assignment of counsel granted and Timothy P. Donaher, Esq., Monroe County Public Defender, 10 N. Fitzhugh Street, Rochester, New York 14614 assigned as counsel to the appellant on the appeal herein.

PATRICIA SCHWARTZ, Appellant, v ISHAQUE NAGORI et al., Respondents.

Submitted September 8, 2014; decided October 23, 2014

Reported below, 115 AD3d 733.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution (*see Cuadrado v New York City Tr. Auth.*, 14 NY3d 748 [2010]).

In the Matter of STATE OF NEW YORK, Respondent, v ENRIQUE T., Appellant.

Submitted July 28, 2014; decided October 23, 2014

Reported below, 114 AD3d 618; 93 AD3d 158.

Motion to amend the caption dismissed as academic.

In the Matter of STATE OF NEW YORK, Respondent, v ENRIQUE T. Appellant.

Submitted October 6, 2014; decided October 23, 2014

Reported below, 114 AD3d 618; 93 AD3d 158.

Motion by appellant for permission to withdraw the appeal granted and appeal marked withdrawn.

In the Matter of TRENASIA J. ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent; FRANK J., Appellant. (Proceeding No. 1.)

In the Matter of RAYMOND J., an Infant. ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent; FRANK J., Appellant. (Proceeding No. 2.)

In the Matter of TAVIA J., an Infant. ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent; FRANK J., Appellant. (Proceeding No. 3.)

In the Matter of BRIJE D., an Infant. ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent; FRANK J., Appellant. (Proceeding No. 4.)

Submitted October 20, 2014; decided October 23, 2014

Reported below, 107 AD3d 992.

Motion by The Bronx Defenders et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

UNIVERSAL AMERICAN CORP., Appellant, v NATIONAL UNION FIRE
INSURANCE COMPANY OF PITTSBURGH, PA., Respondent.

Submitted October 20, 2014; decided October 23, 2014

Reported below, 110 AD3d 434.

Motion by United Policyholders for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

Chief Judge LIPPMAN taking no part.

[21 NE3d 558, 997 NYS2d 106]

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v EUGENE
POLHILL, Respondent.

Argued September 18, 2014; decided October 28, 2014

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered January 30, 2013. The Appellate Division (1) reversed, on the law, a judgment of the Supreme Court, Queens County (Joseph A. Grosso, J., at pretrial hearing; Richard L. Buchter, J., at trial and sentence), which had convicted defendant, upon a jury verdict, of attempted robbery in the second degree; (2) granted those branches of defendant's omnibus motion which were to suppress a videotaped statement made by him to law enforcement authorities and identification evidence; and (3) ordered a new trial.

The Appellate Division concluded, among other things, that Supreme Court should have suppressed the identification evidence because the police lacked reasonable suspicion to stop and detain defendant on the street. The radio broadcast of a robbery in progress described the perpetrators as two black males wearing black jackets, one of whom was wearing blue jeans and one

of whom was wearing black jeans, and the complainant described the perpetrators to the responding police officers as “wearing dark clothing,” one taller than the other, and one with a hood. The Appellate Division held that those descriptions did not provide the police with reasonable suspicion to stop and detain defendant, who was dressed in a dark gray and dark green camouflage jacket and standing alone, outside a liquor store, 20 blocks away from the crime scene.

People v Polhill, 102 AD3d 988, appeal dismissed.

HEADNOTE

Crimes — Appeal — Matters Appealable — Mixed Question of Law and Fact — Reasonable Suspicion to Stop and Detain Defendant

In a criminal prosecution in which the Appellate Division determined that Supreme Court should have suppressed the identification evidence because the police lacked reasonable suspicion to stop and detain defendant on the street, the appeal from the Appellate Division order reversing the judgment of conviction was dismissed for failing to meet the requisites of CPL 450.90 (2) (a). Whether the circumstances of a particular case rise to the level of reasonable suspicion presents a mixed question of law and fact. Therefore, the reversal was not “on the law alone or upon the law and such facts which, but for the determination of law, would not have led to reversal” (CPL 450.90 [2] [a]) within the meaning of the statute, and, thus, the order was not appealable.

APPEARANCES OF COUNSEL

Barket, Marion, Epstein & Kearon, LLP, Garden City (*Donna Aldea* of counsel), and *Richard A. Brown, District Attorney*, Kew Gardens (*John M. Ryan, James C. Quinn* and *Robert J. Masters* of counsel), for appellant.

Lynn W.L. Fahey, Appellate Advocates, New York City (*Leila Hull* and *Allegra Glashausser* of counsel), for respondent.

New York Civil Liberties Union Foundation, New York City (*Taylor Pendergrass, Christopher Dunn* and *Corey Stoughton* of counsel), and *American Civil Liberties Union Foundation*, New York City (*Ezekiel Edwards* and *Brandon Buskey* of counsel), for New York Civil Liberties Union and another, amici curiae.

Barbara S. Gillers, New York University School of Law, New York City, and *Patterson Belknap Webb & Tyler LLP*, New York City (*Eugene M. Gelernter* and *Amy N. Vegari* of counsel), for Legal Ethics Bureau at New York University School of Law, amicus curiae.

Frank A. Sedita III, Buffalo, *Morrie I. Kleinbart*, Staten Island, and *Donna Milling*, Buffalo, for District Attorneys Association of the State of New York, amicus curiae.

OPINION OF THE COURT

MEMORANDUM.

The appeal should be dismissed for failing to meet the requisites of CPL 450.90 (2) (a).

The Appellate Division determined that Supreme Court should have suppressed the identification evidence because the police lacked reasonable suspicion to stop and detain defendant on the street (102 AD3d 988 [2013]). Whether the circumstances of a particular case rise to the level of reasonable suspicion presents a mixed question of law and fact (*see People v Howard*, 74 NY2d 943 [1989]). Because the Appellate Division's reversal was thus not "on the law alone or upon the law and such facts which, but for the determination of law, would not have led to reversal" (CPL 450.90 [2] [a]), its order is not appealable.

Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT, RIVERA and ABDUS-SALAAM concur.

Appeal dismissed, in a memorandum.

DANE E. CLAYTON, Appellant, v NEW YORK CITY TAXI & LIMOUSINE COMMISSION et al., Respondents.

Submitted October 6, 2014; decided October 28, 2014

Reported below, 117 AD3d 602.

Motion for reargument of motion for leave to appeal denied [*see* 24 NY3d 902 (2014)].

In the Matter of RAGHUBIR K. GUPTA, a Suspended Attorney, Appellant. GRIEVANCE COMMITTEE FOR THE SECOND, ELEVENTH, AND THIRTEENTH JUDICIAL DISTRICTS, Respondent.

Submitted September 29, 2014; decided October 28, 2014

Reported below, 2014 NY Slip Op 05984.

Motion for leave to appeal denied. Motion for a stay dismissed as academic.

LUPE DEVELOPMENT PARTNERS, LLC, et al., Appellants, v PACIFIC FLATS I, LLC, et al., Defendants. PENNY DRUE BAIRD, Nonparty Respondent.

Submitted August 18, 2014; decided October 28, 2014

Reported below, 118 AD3d 645.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

NEW YORK CITY SCHOOL CONSTRUCTION AUTHORITY, Respondent, v ADMIRAL CONSTRUCTION, LLC, Appellant.

Submitted August 18, 2014; decided October 28, 2014

Reported below, 114 AD3d 914.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

RYAN NICASTRO, Appellant, v NEW YORK CENTRAL MUTUAL FIRE INSURANCE COMPANY, Respondent.

Submitted September 15, 2014; decided October 28, 2014

Reported below, 117 AD3d 1545.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RAPHAEL GOLB, Appellant.

Submitted July 28, 2014; decided October 28, 2014

Reported below, 102 AD3d 601.

Motion for a stay dismissed as academic.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v NATHANIEL WILLIS, Appellant.

Submitted September 15, 2014; decided October 28, 2014

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain this

motion for leave to appeal from the order of County Court entered in this proceeding commenced in City Court (*see* NY Const, art VI, § 3 [b]; CPLR 5602 [a]). Motion for poor person relief dismissed as academic.

ARTHUR E. RONDEAU, Appellant, v ALLAN HOUSTON et al.,
Respondents.

ARTHUR E. RONDEAU, Appellant, v NEW YORK KNICKERBOCKERS
et al., Respondents.

Submitted August 11, 2014; decided October 28, 2014

Reported below, 118 AD3d 638.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]).

ARTHUR E. RONDEAU, Appellant, v ALLAN HOUSTON et al.,
Respondents.

ARTHUR E. RONDEAU, Appellant, v NEW YORK KNICKERBOCKERS
et al., Respondents.

Submitted October 6, 2014; decided October 28, 2014

Reported below, 118 AD3d 638.

Motion for the imposition of sanctions denied.

GEORGE BUNDY SMITH, SR., Appellant, v UNITED CHURCH OF
CHRIST et al., Respondents.

Submitted October 6, 2014; decided October 28, 2014

Reported below, 2014 NY Slip Op 70210(U).

Motion for reargument of motion for leave to appeal denied
[*see* 24 NY3d 902 (2014)].

Judges RIVERA and ABDUS-SALAAM taking no part.

2301 7TH AVENUE HDFC, Respondent, v DANA N. ESCOFFIER,
Administrator of the Estate of LOVEY BRANHAM, Appellant.

Submitted October 6, 2014; decided October 28, 2014

Reported below, 2014 NY Slip Op 68513(U).

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain this motion for leave to appeal from the order of the Appellate Division entered in this proceeding commenced in the Civil Court of the City of New York (*see* NY Const, art VI, § 3 [b] [7]; CPLR 5602 [a]). Motion for poor person relief dismissed as academic.

In the Matter of BRAD WHITE, Appellant, v DARWIN LACLAIR, as Superintendent of Franklin Correctional Facility, et al., Respondents.

Submitted September 29, 2014; decided October 28, 2014

Reported below, 119 AD3d 1303.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]). Motion for poor person relief dismissed as academic.

In the Matter of KATHY WILSON et al., Appellants, v GEORGINA BOWMAN, Respondent, et al., Respondents.

Submitted October 29, 2014; decided October 30, 2014

Reported below, 121 AD3d 1402.

Motion for leave to appeal denied. The Court of Appeals restates the rule that denial of a motion for leave to appeal is not equivalent to an affirmance and has no precedential value (*see Matter of Marchant v Mead-Morrison Mfg. Co.*, 252 NY 284, 297-298 [1929]).

Judge READ taking no part.

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(October 1, 2014 through October 31, 2014)

People v Adams	1st Dept: 117 AD3d 104 (NY)	denied 10/10/14 (Pigott, J.)
People v Alcindor	1st Dept: 118 AD3d 621 (NY)	denied 10/22/14 (Read, J.)
People v Anant	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 44 Misc 3d 138(A) (Kings)	denied 10/20/14 (Lippman, Ch. J.)
People v Anderson	3d Dept: 118 AD3d 1137 (Albany)	denied 10/1/14 (Rivera, J.)

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People v Antonovsky	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 41 Misc 3d 44 (Kings)	denied 10/1/14 (Rivera, J.)
People v Artis	App Div, 3d Dept: 2014 NY Slip Op 76937(U) (Broome)	denied 10/27/14 (Read, J.)
People v Barcero	2d Dept: 116 AD3d 1060 (Queens)	denied 10/3/14 (Abdus-Salaam, J.)
People v Bediako	2d Dept: 119 AD3d 598 (Queens)	denied 10/10/14 (Pigott, J.)
People v Bennett	App Div, 2d Dept: 2014 NY Slip Op 74708(U) (Kings)	dismissed 10/30/14 (Pigott, J.)
People v Blackman	3d Dept: 118 AD3d 1148 (Broome)	denied 10/22/14 (Lippman, Ch. J.)
People v Blas	2d Dept: 120 AD3d 585 (Kings)	denied 10/22/14 (Read, J.)
People v Brown (Charlie)	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 44 Misc 3d 129(A) (Kings)	denied 10/22/14 (Lippman, Ch. J.)
People v Brown (Rod)	1st Dept: 116 AD3d 568 (NY)	denied 10/3/14 (Abdus-Salaam, J.)
People v Buck	4th Dept: 118 AD3d 1452 (Niagara)	denied 10/1/14 (Rivera, J.)
People v Byrd	2d Dept: 116 AD3d 875 (Orange)	denied 10/29/14 (Lippman, Ch. J.)
People v Campos	App Div, 1st Dept: 2014 NY Slip Op 76881(U) (Bronx)	denied 10/22/14 (Read, J.)
People v Cato (Jason)	App Div, 4th Dept: 2014 NY Slip Op 76129(U) (Ontario)	dismissed 10/1/14 (Rivera, J.)
People v Cato (Jason)	App Div, 4th Dept, 6/18/14 (Ontario)	dismissed 10/1/14 (Rivera, J.)
People v Chacko	2d Dept: 119 AD3d 955 (Westchester)	denied 10/7/14 (Smith, J.)
People v Chappell	App Div, 2d Dept: 2013 NY Slip Op 67902(U) (Nassau)	denied 10/29/14 (Lippman, Ch. J.)
People v Codina	1st Dept: 110 AD3d 401 (NY)	granted 10/31/14 (Smith, J.)
People v Cooper	2d Dept: 120 AD3d 710 (Suffolk)	denied 10/27/14 (Read, J.)
People v Cox	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 44 Misc 3d 134(A) (Kings)	denied 10/10/14 (Pigott, J.)
People v Cruz	2d Dept: 111 AD3d 651 (Kings)	denied reconsideration 10/1/14 (Rivera, J.)
People v Curtis	2d Dept: 119 AD3d 705 (Dutchess)	denied 10/10/14 (Pigott, J.)
People v D'Attore	App Div, 1st Dept: 2014 NY Slip Op 75467(U) (Bronx)	dismissed 10/7/14 (Smith, J.)

People v Daisley	1st Dept: 115 AD3d 535 (NY)	denied reconsideration 10/14/14 (Abdus-Salaam, J.)
People v Desmond	3d Dept: 118 AD3d 1131 (Broome)	denied 10/20/14 (Lippman, Ch. J.)
People v DiLaura	4th Dept: 119 AD3d 1450 (Niagara)	denied 10/10/14 (Pigott, J.)
People v Doe	4th Dept: 120 AD3d 947 (Monroe)	denied 10/30/14 (Pigott, J.)
People v Dollar	3d Dept: 117 AD3d 1326 (Albany)	denied 10/10/14 (Pigott, J.)
People v Edwards	2d Dept: 118 AD3d 1018 (Kings)	denied 10/22/14 (Read, J.)
People v Ellis	2d Dept: 117 AD3d 843 (Kings)	denied 10/27/14 (Lippman, Ch. J.)
People v Evans	1st Dept: 116 AD3d 545 (NY)	denied 10/3/14 (Abdus-Salaam, J.)
People v Francis	App Div, 1st Dept: 2013 NY Slip Op 95420(U) (NY)	denied reconsideration 10/27/14 (Read, J.)
People v Glover	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 41 Misc 3d 143(A) (Kings)	denied 10/1/14 (Rivera, J.)
People v Gordon	3d Dept: 119 AD3d 1284 (Albany)	denied 10/29/14 (Pigott, J.)
People v Griffin (Anthony)	4th Dept: 118 AD3d 1368 (Onondaga)	denied 10/29/14 (Lippman, Ch. J.)
People v Griffin (Gary)	App Div, 3d Dept: 2014 NY Slip Op 65736(U) (Ulster)	dismissed 10/27/14 (Read, J.)
People v Hadfield	3d Dept: 119 AD3d 1224 (St. Lawrence)	denied 10/20/14 (Lippman, Ch. J.)
People v Hiraeta	2d Dept: 117 AD3d 964 (Queens)	denied 10/7/14 (Smith, J.)
People v Holland	2d Dept: 119 AD3d 708 (Nassau)	denied 10/22/14 (Lippman, Ch. J.)
People v Howard (Kevin)	App Div, 1st Dept: 2013 NY Slip Op 95420(U) (NY)	denied reconsideration 10/27/14 (Read, J.)
People v Howard (Tyrone)	App Div, 1st Dept: 2013 NY Slip Op 95420(U) (NY)	denied reconsideration 10/27/14 (Read, J.)
People v Hyra	App Term, 2d Dept, 9th & 10th Jud Dists: 2014 NY Slip Op 73454(U) (Westchester)	denied 10/29/14 (Lippman, Ch. J.)
People v Ingvarsdottir	2d Dept: 118 AD3d 1023 (Westchester)	denied 10/1/14 (Smith, J.)

MEMORANDA

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People v Irving	County Ct, 4/25/14 (Oneida)	denied 10/27/14 (Read, J.)
People v John (Dion)	2d Dept: 119 AD3d 709 (Queens)	denied 10/29/14 (Pigott, J.)
People v Johnson (Cornelius)	4th Dept: 119 AD3d 1456 (Erie)	denied 10/1/14 (Smith, J.)
People v Johnson (Kevin)	4th Dept: 119 AD3d 1370 (Genesee)	denied 10/10/14 (Pigott, J.)
People v Jungle	3d Dept: 119 AD3d 1077 (Schenectady)	denied 10/27/14 (Lippman, Ch. J.)
People v King	2d Dept: 119 AD3d 819 (Queens)	denied 10/29/14 (Pigott, J.)
People v Lee	App Div, 4th Dept, 12/11/13 (Erie)	denied reconsideration 10/1/14 (Rivera, J.)
People v Lester	App Div, 1st Dept: 2013 NY Slip Op 95420(U) (NY)	denied reconsideration 10/27/14 (Read, J.)
People v Lewis	3d Dept: 118 AD3d 1125 (Schenectady)	denied 10/22/14 (Lippman, Ch. J.)
People v Long	3d Dept: 117 AD3d 1326 (Albany)	denied 10/10/14 (Pigott, J.)
People v Lopez	3d Dept: 118 AD3d 1190 (Washington)	denied 10/10/14 (Pigott, J.)
People v Lyons	2d Dept: 113 AD3d 797 (Queens)	denied 10/1/14 (Rivera, J.)
People v Malone	4th Dept: 119 AD3d 1352 (Monroe)	denied 10/15/14 (Grafteo, J.)
People v Martinez	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 41 Misc 3d 143(A) (Queens)	denied reconsideration 10/22/14 (Read, J.)
People v Mason	2d Dept: 119 AD3d 710 (Kings)	denied 10/29/14 (Pigott, J.)
People v McCray	App Div, 4th Dept, 6/30/14 (Erie)	dismissed 10/10/14 (Pigott, J.)
People v McKeon	4th Dept: 118 AD3d 1368 (Orleans)	denied 10/10/14 (Pigott, J.)
People v McNew	4th Dept: 117 AD3d 1491 (Niagara)	denied 10/3/14 (Abdus-Salaam, J.)
People v Miles	3d Dept: 119 AD3d 1077 (Schenectady)	denied 10/27/14 (Lippman, Ch. J.)
People v Miller	4th Dept: 118 AD3d 1463 (Erie)	denied 10/10/14 (Pigott, J.)
People v Mills	4th Dept: 118 AD3d 1367 (Genesee)	denied reconsideration 10/28/14 (Read, J.)

People v Moise	2d Dept: 120 AD3d 592 (Kings)	denied 10/27/14 (Read, J.)
People v Moon	3d Dept: 119 AD3d 1293 (Ulster)	denied 10/29/14 (Pigott, J.)
People v Munson	4th Dept: 120 AD3d 987 (Wayne)	denied 10/29/14 (Pigott, J.)
People v Nham Ho	4th Dept: 118 AD3d 1390 (Oneida)	denied 10/22/14 (Read, J.)
People v Oguntunji	2d Dept: 119 AD3d 712 (Nassau)	denied 10/10/14 (Pigott, J.)
People v Ottley	App Term, 1st Dept: 44 Misc 3d 132(A) (NY)	denied 10/22/14 (Lippman, Ch. J.)
People v Padmore	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 44 Misc 3d 129(A) (Kings)	denied 10/20/14 (Lippman, Ch. J.)
People v Palaguachi	1st Dept: 119 AD3d 447 (NY)	denied 10/30/14 (Pigott, J.)
People v Perez (Federico)	1st Dept: 116 AD3d 511 (Bronx)	granted 10/30/14 (Smith, J.)
People v Perez (Raymond)	2d Dept: 120 AD3d 516 (Westchester)	denied 10/29/14 (Lippman, Ch. J.)
People v Persaud	2d Dept: 118 AD3d 820 (Nassau)	denied 10/1/14 (Smith, J.)
People v Peterson	2d Dept: 119 AD3d 961 (Suffolk)	denied 10/10/14 (Pigott, J.)
People v Pierre	2d Dept: 117 AD3d 1087 (Kings)	denied 10/22/14 (Read, J.)
People v Pileggi	2d Dept: 116 AD3d 984 (Westchester)	denied 10/3/14 (Abdus-Salaam, J.)
People v Poles	4th Dept: 119 AD3d 1387 (Monroe)	denied 10/29/14 (Lippman, Ch. J.)
People v Ravenell	2d Dept: 120 AD3d 516 (Kings)	denied 10/28/14 (Read, J.)
People v Reinhardtsen	2d Dept: 119 AD3d 961 (Suffolk)	denied 10/10/14 (Pigott, J.)
People v Reyes	App Div, 1st Dept: 2014 NY Slip Op 66357(U) (NY)	denied 10/3/14 (Abdus-Salaam, J.)
People v Rivaldo	4th Dept: 117 AD3d 1469 (Monroe)	denied 10/3/14 (Abdus-Salaam, J.)
People v Romero	4th Dept: 120 AD3d 947 (Monroe)	denied 10/30/14 (Pigott, J.)
People v Russell	App Div, 4th Dept, 6/3/14 (Onondaga)	dismissed 10/1/14 (Rivera, J.)
People v Saldana	2d Dept: 119 AD3d 965 (Kings)	denied 10/22/14 (Read, J.)
People v Santos	2d Dept: 115 AD3d 993 (Orange)	denied 10/3/14 (Abdus-Salaam, J.)
People v Serrano	App Div, 3d Dept: 2014 NY Slip Op 74216(U) (Greene)	denied 10/22/14 (Lippman, Ch. J.)

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People v Shaw	4th Dept: 118 AD3d 1461 (Cayuga)	denied 10/1/14 (Smith, J.)
People v Sherrod	4th Dept: 119 AD3d 1387 (Erie)	denied 10/7/14 (Smith, J.)
People v Smith (Desmond)	2d Dept: 120 AD3d 1270 (Kings)	denied 10/27/14 (Lippman, Ch. J.)
People v Smith (Glenn)	App Term, 2d Dept, 9th & 10th Jud Dists: 43 Misc 3d 71 (Orange)	granted 10/6/14 (Rivera, J.)
People v Stephens	1st Dept: 118 AD3d 455 (NY)	denied 10/31/14 (Lippman, Ch. J.)
People v Thomas	App Div, 2d Dept: 2014 NY Slip Op 75803(U) (Richmond)	dismissed 10/27/14 (Read, J.)
People v Thompson	App Div, 2d Dept: 2014 NY Slip Op 72212(U) (Richmond)	denied 10/31/14 (Lippman, Ch. J.)
People v Tracy	App Div, 1st Dept: 2014 NY Slip Op 78022(U) (Bronx)	denied 10/27/14 (Read, J.)
People v Vellon	App Div, 1st Dept: 2013 NY Slip Op 93917(U) (NY)	denied reconsideration 10/29/14 (Pigott, J.)
People v Witherspoon	2d Dept: 119 AD3d 879 (Kings)	denied 10/30/14 (Pigott, J.)
People v Wood	2d Dept: 117 AD3d 888 (Suffolk)	denied 10/3/14 (Abdus-Salaam, J.)
People v Yaw	3d Dept: 120 AD3d 1447 (Schuyler)	denied 10/20/14 (Lippman, Ch. J.)
People v Zalevsky	2d Dept: 120 AD3d 522 (Kings)	denied 10/22/14 (Read, J.)

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

Decisions of Appellate Division Justices*

(October 1, 2014 through October 31, 2014)

People v John (Sean)	2d Dept: 120 AD3d 511 (Kings)	granted 10/20/14 (Hall, J.)
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[21 NE3d 563, 997 NYS2d 111]

**BRANIC INTERNATIONAL REALTY CORP., Appellant, v PHILLIP PITT,
Respondent, et al., Respondents.**

Argued October 22, 2014; decided November 18, 2014

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order

* Includes only applications that were granted.

of that Court, entered April 16, 2013. The Appellate Division (1) reversed, on the law, so much of an order of the Appellate Term of the Supreme Court in the First Judicial Department (op 30 Misc 3d 29 [2010]) as had (a) reversed an order of the Civil Court of the City of New York, New York County (Gerald Lebovits, J.; op 24 Misc 3d 940 [2009]), granting respondent's motion for summary judgment dismissing the petition in a holdover summary proceeding and denying petitioner's cross motion for summary judgment; (b) denied respondent's motion; and (c) granted petitioner's motion; (2) granted respondent's motion; and (3) denied petitioner's motion. The following question was certified by the Appellate Division: "Was the order of this Court, which reversed the order of Appellate Term, properly made?"

Petitioner was the owner of a single room occupancy rent-stabilized hotel located in New York City. Respondent was referred to petitioner for housing by the New York City Human Resources Administration (HRA), with the HRA paying petitioner a public assistance shelter allowance. Petitioner commenced a licensee holdover proceeding after the HRA ceased making payments and respondent continued to reside in the hotel without paying. Respondent voluntarily moved out of the hotel while his appeal to the Appellate Division from the order of the Appellate Term was pending.

Branic Intl. Realty Corp. v Pitt, 106 AD3d 178, reversed.

HEADNOTE

Appeal — Academic and Moot Questions — Voluntary Vacatur of Premises in Holdover Proceeding

The issues presented in petitioner's holdover proceeding were moot because respondent voluntarily vacated the premises. As the mootness exception was not applicable, the matter was remitted to the Appellate Division with directions to dismiss the proceeding solely on the ground of mootness.

APPEARANCES OF COUNSEL

Rosenberg Calica & Birney LLP, Garden City (*Ronald J. Rosenberg* and *Lesley A. Reardon* of counsel), for appellant.

Goddaard Riverside SRO Law Project, New York City (*Martha A. Weithman* of counsel), and *Manhattan Legal Services*, New York City (*Jim Provost* of counsel), for respondent.

MFY Legal Services, Inc., New York City (*Tanya Kessler*, *Brian Sullivan*, *Kevin Cremin* and *Jeanette Zellhof* of counsel), and *Covington & Burling LLP*, New York City (*C. William Phillips* and *Evie Spanos* of counsel), for The Bronx Defenders and others, amici curiae.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed, without costs, the matter remitted to the Appellate Division with directions to dismiss the proceeding solely on the ground of mootness, and the certified question not answered as unnecessary.

The issues presented in this case are moot because respondent voluntarily vacated the premises. The mootness exception is not applicable under the facts of this case (*see e.g. Matter of Hearst Corp. v Clyne*, 50 NY2d 707, 714-715 [1980]) and therefore the proceeding should be dismissed (*see Matter of Park E. Corp. v Whalen*, 43 NY2d 735, 736 [1977]).

Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, FIGOTT and RIVERA concur; Judge ABDUS-SALAAM taking no part.

Order reversed, without costs, matter remitted to the Appellate Division, First Department, with directions to dismiss the petition solely on the ground of mootness and certified question not answered as unnecessary, in a memorandum.

[23 NE3d 1021, 998 NYS2d 753]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DERRICK HILL, Appellant.

Argued October 16, 2014; decided November 18, 2014

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered April 9, 2013. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Daniel P. Conviser, J.), which had convicted defendant, upon a jury verdict, of driving while intoxicated and driving while ability impaired.

In affirming the judgment, the Appellate Division concluded that the court had properly exercised its discretion in determining that defendant's cross-examination had opened the door to limited testimony that defendant declined to make a statement to the arresting officer, and that defendant had pursued a line of questioning that created misleading impressions about his post-arrest interactions with the police.

People v Hill, 105 AD3d 472, reversed.

HEADNOTE

Crimes — Right to Remain Silent — Evidence of Post-Miranda Silence

In a prosecution for driving while intoxicated, Supreme Court erred in permitting evidence of defendant's post-*Miranda* silence to be introduced at trial. Absent "unusual circumstances," evidence of a defendant's silence at the time of arrest is generally inadmissible under common-law evidentiary principles, and the use for impeachment purposes of a defendant's silence after receiving *Miranda* warnings has been deemed impermissible as a matter of due process. Under the circumstances presented defendant did not open the door to evidence of his post-*Miranda* silence and Supreme Court's error in permitting its introduction was not harmless.

APPEARANCES OF COUNSEL

Steven Banks, The Legal Aid Society, New York City (*Jonathan Garelick* and *Scott A. Rosenberg* of counsel), for appellant.

Cyrus R. Vance, Jr., District Attorney, New York City (*Philip Morrow* and *Alan Gadlin* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed and a new trial ordered.

Absent "unusual circumstances," evidence of a defendant's silence at the time of arrest is generally inadmissible under common-law evidentiary principles (*People v Conyers*, 52 NY2d 454, 459 [1981]). And the use for impeachment purposes of a defendant's silence after receiving *Miranda* warnings has been deemed impermissible as a matter of due process (see *Doyle v Ohio*, 426 US 610, 619 [1976]). Under the circumstances presented, we conclude that defendant did not open the door to evidence of his post-*Miranda* silence and, therefore, Supreme Court erred in permitting its introduction at trial. Nor can the error be viewed as harmless in this case.

Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, FIGOTT and RIVERA concur; Judge ABDUS-SALAAM taking no part.

Order reversed and a new trial ordered, in a memorandum.

LINDA DAURIA et al., Appellants, v CASTLEPOINT INSURANCE COMPANY et al., Defendants, and FRANK CAMPO, Respondent.

Decided November 18, 2014

Reported below, 120 AD3d 1016.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of EDWIN LOPEZ, Respondent, v ANDREA EVANS, Appellant.

Submitted November 3, 2014; decided November 18, 2014

Reported below, 104 AD3d 105.

Motion by The Fortune Society for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

NELLA MANKO, Appellant, v LENOX HILL HOSPITAL, Respondent.

Decided November 18, 2014

Reported below, 118 AD3d 676, 677, 678.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that it does not lie (*see* NY Const, art VI, § 3 [b]; CPLR 5601).

In the Matter of NOEL OLMOSPerez, Appellant, v ANDREA W. EVANS, as Chair of the Board of Parole, Respondent.

Submitted October 6, 2014; decided November 18, 2014

Reported below, 114 AD3d 1077.

Motion to expand the record denied.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ASSAD CEDENO, Appellant.

Submitted October 27, 2014; decided November 18, 2014

Reported below, 113 AD3d 695.

Motion for assignment of counsel granted and Lynn W.L. Fahy, Esq., Appellate Advocates, 111 John Street, 9th Floor, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v AN-
THONY CRAWFORD, Appellant.

Submitted November 10, 2014; decided November 18, 2014

Reported below, 119 AD3d 471.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 120 Wall Street, 28th Floor, New York, NY 10005 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ZA-
CHARY T. GUERIN, Appellant.

Submitted November 3, 2014; decided November 18, 2014

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v SEAN
JOHN, Appellant.

Submitted November 17, 2014; decided November 18, 2014

Reported below, 120 AD3d 511.

Motion for assignment of counsel granted and Lynn W.L. Fahey, Esq., Appellate Advocates, 111 John Street, 9th Floor, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v LYNDEN
LOBBAN, Appellant.

Submitted October 27, 2014; decided November 18, 2014

Reported below, 2014 NY Slip Op 77055(U).

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 dismissed upon

the ground that no application for leave to appeal pursuant to CPL 460.20 will lie from an order of a single Justice of the Appellate Division denying leave to appeal to that Court pursuant to CPL 460.15.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MATTHEW P., Appellant.

Submitted November 10, 2014; decided November 18, 2014

Reported below, 41 Misc 3d 128(A), 2013 NY Slip Op 51681(U).

Motion for assignment of counsel granted and Seymour James, Jr., Esq., The Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JEFFREY MERCADO, Appellant.

Submitted November 10, 2014; decided November 18, 2014

Reported below, 120 AD3d 441.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 120 Wall Street, 28th Floor, New York, NY 10005 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ANTHONY V. PAVONE, Appellant.

Submitted October 27, 2014; decided November 18, 2014

Reported below, 117 AD3d 1329.

Motion for assignment of counsel granted and Paul J. Connolly, care of Law Office of Paul J. Connolly, Esq., 2 Wedge Road, Delmar, New York 12054 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RONALD D. ROSSBOROUGH, Appellant.

Submitted November 17, 2014; decided November 18, 2014

Reported below, 113 AD3d 1114.

Motion for assignment of counsel granted and Christine Seppeler, care of Law Office of Christine Seppeler, 144 Exchange Blvd., Suite 402, Rochester, New York 14614, assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JULIAN SILVA, Appellant.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v PAMELA HANSON, Appellant.

Submitted November 10, 2014; decided November 18, 2014

Reported below, *People v Silva*, 99 AD3d 522.

Reported below, *People v Hanson*, 100 AD3d 771.

Motion by Thomas P. Theophilos for leave to file a brief amicus curiae on the appeals herein dismissed as untimely (*see* Rules of Ct of Appeals [22 NYCRR] § 500.23 [a] [1] [iii]).

Judge ABDUS-SALAAM taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v OMAR WHITE, Appellant.

Submitted November 3, 2014; decided November 18, 2014

Reported below, 119 AD3d 1286.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

[21 NE3d 568, 997 NYS2d 115]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TYRONE DAVIS, Appellant.

Decided November 20, 2014

SUMMARY

APPEAL, by permission of the Chief Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered February 5, 2014. The Appellate Division affirmed a judgment of the Suffolk County Court (Robert W. Doyle, J., at plea; John J. Toomey, Jr.,

J., at sentence) which had convicted defendant, upon his plea of guilty, of attempted burglary in the third degree.

People v Davis, 114 AD3d 697, affirmed.

HEADNOTE

Crimes — Appeal — Preservation of Issue for Review — Failure to Move to Withdraw Plea or Vacate Judgment

Defendant's challenge to the factual sufficiency of his plea allocution was properly rejected by the Appellate Division as he failed to bring a motion to withdraw his plea under CPL 220.60 (3) or a motion to vacate the judgment of conviction pursuant to CPL 440.10, and his factual recitation did not negate the intent element of the crime to which he pleaded guilty. Therefore, defendant's plea did not qualify for the "rare case" exception to the preservation requirement.

APPEARANCES OF COUNSEL

Feldman & Feldman, Uniondale (*Steven A. Feldman* and *Arza Feldman* of counsel), for appellant.

Thomas J. Spota, District Attorney, Riverhead (*Thomas Constant* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

Defendant failed to bring a motion to withdraw his plea under CPL 220.60 (3) or a motion to vacate the judgment of conviction pursuant to CPL 440.10. Nor did his factual recitation negate the intent element of the crime to which he pleaded guilty. His plea therefore does not qualify for the "rare case" exception to the preservation requirement under *People v Lopez* (71 NY2d 662, 666 [1988]). Consequently, defendant's challenge to the factual sufficiency of his allocution "was properly rejected by the Appellate Division and its order upholding the plea and conviction should be affirmed" (*People v Toxey*, 86 NY2d 725, 726 [1995]).

Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT, RIVERA and ABDUS-SALAAM concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, in a memorandum.

[21 NE3d 1009, 997 NYS2d 348]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v WILLIAM CULLEN, Appellant.

Argued September 17, 2014; decided October 23, 2014

SUMMARY

APPEAL, by permission of the Chief Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered October 4, 2013. The Appellate Division affirmed a judgment of the Supreme Court, Onondaga County (John J. Brunetti, J.), convicting defendant, upon a jury verdict, of rape in the second degree (two counts), criminal sexual act in the second degree, and incest in the second degree (three counts).

People v Cullen, 110 AD3d 1474, affirmed.

HEADNOTE

Crimes — Witnesses — Prior Consistent Statement — Testimony Concerning Fact and Timing of Child Complainant's Revelations in Sex Crimes Prosecution

In the prosecution of defendant for rape and related crimes involving his daughter, the trial judge did not abuse his discretion when he allowed the People to elicit testimony from complainant's mother and group home counselor about the fact and timing of complainant's revelations concerning her sexual contact with defendant for the nonhearsay purpose of explaining the events kicking off the investigative process that led to the charges against defendant. The complainant admittedly passed up many opportunities to report defendant's alleged sexual misconduct, and the defense attributed her accusations to the wrath of a troubled girl trying to get even with defendant for not winning her release from the group home and taking her back to live with him. The jury was therefore permitted to consider evidence of the circumstances of complainant's delayed disclosure.

APPEARANCES OF COUNSEL

Hiscock Legal Aid Society, Syracuse (*Kristen N. McDermott* of counsel), for appellant.

William J. Fitzpatrick, District Attorney, Syracuse (*James P. Maxwell* and *Maria Maldonado* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

Complainant, who was born in 1993, discovered the identity of her biological father, defendant William Cullen, in early 2006 when she was 12 years old. She expressed a desire to get to

know him, and her mother arranged for the three of them to meet at a restaurant at a local mall. In June 2006, just after complainant turned 13 years old, she moved in with defendant. She resided with defendant until mid-October 2007, and visited him on a few occasions later that fall over a weekend. On December 12, 2007, complainant entered the Cayuga Home for Children (CHC) in Auburn, New York, where she had been placed by Family Court. Later in December 2007, complainant discovered that she was pregnant.

Complainant knew that defendant was the father because, beginning in the summer of 2007, he had forced her to have sex with him, including on her last weekend visit with him in November 2007. At first, she lied that the father was “David,” someone whom she invented. In the spring of 2008, however, complainant dropped a “hint” about defendant’s sexual conduct towards her in a conversation with her mother. She finally fully disclosed the truth to a CHC counselor. She later testified that after her pregnancy was terminated, the counselor kept “drilling,” pressing her to reveal what was wrong, and “eventually [complainant] just popped [because she] couldn’t deal with it anymore . . . [Defendant] just kept not being a father, and . . . everything that he did built up and built up and built up, and [she] ended up just saying everything.”

In March 2009, defendant was indicted for second-degree rape (Penal Law § 130.30 [1]), second-degree incest (Penal Law § 255.26) and other crimes. At his ensuing jury trial, Supreme Court, over objection, allowed the prosecutor to ask complainant’s mother if she “remember[ed] having a conversation with [complainant] . . . regarding conduct by her father,” and when this occurred; and if she remembered “receiving information that [complainant] had made a disclosure to someone at CHC,” and when this occurred. Again over objection, the CHC counselor was asked if she had ever had a conversation with complainant about her father, and if, on April 14, 2008, complainant made a disclosure to her “about some sexual misconduct by [defendant].” The counselor answered “yes” to both questions, and the judge advised the jury that this testimony “[was] not evidence that [defendant] did anything wrong. It just explains the subsequent conduct of the witness. It’s not evidence that [defendant] did anything wrong, it’s hearsay.”

The jury convicted defendant of rape, incest and other sexual crimes; Supreme Court sentenced him to 15 years in prison, to

be followed by five years of postrelease supervision. Defendant appealed, and the Appellate Division unanimously affirmed (110 AD3d 1474 [4th Dept 2013]). Citing its earlier decision in *People v Ludwig* (104 AD3d 1162 [4th Dept 2013]), the court rejected defendant's claim of improper bolstering because the objected-to testimony of complainant's mother and the CHC counselor "was not admitted for its truth" (*id.* at 1475). The Appellate Division also disallowed defendant's other claims (that pervasive misconduct permeated the prosecutor's summation; and that the trial judge improperly constructively amended the indictment and admitted evidence of prior bad acts), to the extent preserved, and concluded that defendant had received the effective assistance of counsel. A Judge of this Court granted defendant permission to appeal (22 NY3d 1087 [2014]), and we now affirm.

The trial judge did not abuse his discretion when he allowed the People to elicit testimony about the fact and timing of complainant's revelations for the nonhearsay purpose of explaining the events kicking off the investigative process that led to the charges against defendant (*see generally People v Ludwig*, 24 NY3d 221 [2014] [decided today]). Complainant admittedly passed up many opportunities to report defendant's alleged sexual misconduct, and the defense attributed her accusations to the wrath of a troubled girl trying to get even with defendant for not winning her release from the CHC group home and taking her back to live with him. The jury was therefore permitted to consider evidence of the circumstances of complainant's delayed disclosure. Finally, we consider defendant's claim of ineffective assistance of counsel to be without merit.

Chief Judge LIPPMAN (concurring in result). For the reasons stated in my dissent in the companion case of *People v Ludwig* (24 NY3d 221, 235 [2014]), I disagree with the majority's reasoning in this case. However, here the court confined the statements to the report alone, and prohibited witnesses from repeating the complainant's statements concerning the description of the crime itself. Given the overwhelming evidence against defendant in this case and the less prejudicial nature of the error, I would find the error here harmless (*People v McDaniel*, 81 NY2d 10, 18 [1993]).

Judges GRAFFEO, READ, PIGOTT and ABDUS-SALAAM concur; Chief Judge LIPPMAN concurs in result in an opinion in which Judge RIVERA concurs; Judge SMITH concurs in result for

reasons stated in his concurring opinion in *People v Ludwig* (24 NY3d 221, 233 [2014] [decided today]).

Order affirmed, in a memorandum.

[21 NE3d 1023, 997 NYS2d 362]

HUYEN V. NGUYEN, Petitioner, v ERIC H. HOLDER, JR., United States Attorney General, Respondent.

Argued September 9, 2014; decided October 28, 2014

SUMMARY

PROCEEDING, pursuant to NY Constitution, article VI, § 3 (b) (9) and Rules of the Court of Appeals (22 NYCRR) § 500.27, to review a question certified to the New York State Court of Appeals by the United States Court of Appeals for the Second Circuit. The following question was certified by the United States Court of Appeals and accepted by the New York State Court of Appeals: “Does section 5(3) of New York’s Domestic Relations Law void as incestuous a marriage between an uncle and niece ‘of the half blood’ (that is, where the husband is the half-brother of the wife’s mother)?”

Petitioner, a citizen of Vietnam, sought review in federal court of an order of the Board of Immigration Appeals dismissing her appeal from a decision of an immigration judge which had ordered her removed and denied her petition to remove conditions placed upon her residency in the United States. Petitioner had been admitted as a conditional permanent resident in 2000 based on her marriage to a United States citizen who was the half brother of petitioner’s mother. In 2007, the United States Customs and Immigration Service denied the petition after finding that petitioner’s marriage to her citizen husband was incestuous and therefore void. The case was appealed to the United States Court of Appeals, which certified the above question.

HEADNOTE

Marriage — Validity — Marriage between Uncle and Niece of Half Blood Not Incestuous

A marriage where a husband is the half brother of the wife’s mother is not void as incestuous under Domestic Relations Law § 5 (3).

APPEARANCES OF COUNSEL

Michael E. Marszalkowski, P.C., Buffalo (*Michael E. Marszalkowski* of counsel), for petitioner.

United States Department of Justice, Office of Immigration Litigation, Washington, D.C. (Michael C. Heyse, Stuart F. Delery and Mary Jane Candaux of counsel), for respondent.

OPINION OF THE COURT

Following certification of a question by the United States Court of Appeals for the Second Circuit and acceptance of the question by this Court pursuant to section 500.27 of the Rules of Practice of the Court of Appeals (22 NYCRR 500.27) (22 NY3d 1150 [2014]), and after hearing argument by counsel for the parties and consideration of the briefs and the record submitted, certified question answered in the negative. A marriage where a husband is the half brother of the wife's mother is not void as incestuous under Domestic Relations Law § 5 (3).

Concur: Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT and RIVERA. Judge SMITH concurs in an opinion in which Chief Judge LIPPMAN and Judge RIVERA concur. Judge GRAFFEO concurs in an opinion in which Judges READ and PIGOTT concur. Taking no part: Judge ABDUS-SALAAM.

SMITH, J. (concurring). The United States Court of Appeals for the Second Circuit has asked us whether a marriage between a half uncle and half niece is void as incestuous under Domestic Relations Law § 5 (3). I agree, for the following reasons, that we should answer that it is not.

I

Petitioner is a citizen of Vietnam. In January of 2000, at the age of 19, she was married in Rochester, New York to Vu Truong, who was 24 and a naturalized American citizen. Later that year, petitioner was granted the status of a conditional permanent resident in the United States on the basis of her marriage.

According to the factual findings of the United States Board of Immigration Appeals, which the Second Circuit accepted as supported by substantial evidence, petitioner's mother was born in 1950 to a woman named Nguyen Thi Ba. Twenty-five years later, Nguyen Thi Ba gave birth to Vu Truong. Petitioner's mother and Vu Truong had different fathers. Thus petitioner's mother was Vu Truong's half sister, and petitioner is his half niece.

An immigration judge ordered petitioner removed from the country on the ground that her purported marriage to an American citizen was void, and the Board of Immigration Appeals affirmed. Petitioner sought review of that ruling in the Second

Circuit, and the Second Circuit certified the following question to us:

“Does section 5(3) of New York’s Domestic Relations Law void as incestuous a marriage between an uncle and niece ‘of the half blood’ (that is, where the husband is the half-brother of the wife’s mother)?” (743 F3d 311, 317 [2014].)

II

Section 5 of the Domestic Relations Law reads in full:

“A marriage is incestuous and void whether the relatives are legitimate or illegitimate between either:

“1. An ancestor and a descendant;

“2. A brother and sister of either the whole or the half blood;

“3. An uncle and niece or an aunt and nephew.

“If a marriage prohibited by the foregoing provisions of this section be solemnized it shall be void, and the parties thereto shall each be fined not less than fifty nor more than one hundred dollars and may, in the discretion of the court in addition to said fine, be imprisoned for a term not exceeding six months. Any person who shall knowingly and wilfully solemnize such marriage, or procure or aid in the solemnization of the same, shall be deemed guilty of a misdemeanor and shall be fined or imprisoned in like manner.”

We must decide whether subdivision (3) of this statute should be read to include a half uncle and half niece (or half aunt and half nephew). There is something to be said on both sides of this question.

In common speech, the half brother of one’s mother or father would usually be referred to as an uncle, and the daughter of one’s half sister or half brother would usually be referred to as a niece; the terms “half uncle” and “half niece” are not in common use. Thus it is perfectly plausible to read subdivision (3) as including half blood relatives. On the other hand, the authors of Domestic Relations Law § 5 (2), when prohibiting brother-sister marriages, went to the trouble of adding the words “of either the whole or the half blood.” No similar words appear in section

5 (3), arguably implying that the legislature did not intend the uncle-niece prohibition to reach so far. The statute is ambiguous. Perhaps the likeliest inference is that the authors of section 5 (3) gave no particular thought to the half uncle/half niece question, since if they had they could easily have clarified it either way.

Nor does New York case law point to any clear conclusion. In *Audley v Audley* (196 App Div 103 [1st Dept 1921]), the Appellate Division held a marriage between a half uncle and a half niece to be void under section 5 (3). But in *Matter of Simms* (26 NY2d 163, 166 [1970]) we, without deciding the question, expressed doubt about *Audley*'s conclusion:

“If the Legislature had intended that its interdiction on this type of marriage should extend down to the rather more remote relationship of half blood between uncle and niece, it could have made suitable provision. Its failure to do so in the light of its explicit language relating to brothers and sisters suggests it may not have intended to carry the interdiction this far.”

Thus there is a holding from the Appellate Division pointing in one direction, and dictum from this Court pointing in the other. Neither is binding on us. I would resolve the issue by considering the nature and the purpose of the statute we interpret.

Domestic Relations Law § 5 is in part a criminal statute: it says that the participants in a prohibited marriage may be fined, and may be imprisoned for up to six months. Penal Law § 255.25, using language very similar to that of Domestic Relations Law § 5 (“ancestor, descendant, brother or sister of either the whole or the half blood, uncle, aunt, nephew or niece”), makes entry into a prohibited marriage a class E felony. Where a criminal statute is ambiguous, courts will normally prefer the more lenient interpretation, and the courts of several other states have followed that rule in interpreting their criminal laws not to prohibit relationships between uncles and nieces, or aunts and nephews, of the half blood (*State v Craig*, 254 Kan 575, 580, 867 P2d 1013, 1016 [1994]; *People v Baker*, 69 Cal 2d 44, 50, 442 P2d 675, 678 [1968]; *State v Bartley*, 304 Mo 58, 62, 263 SW 95, 96 [1924]). The government says that these cases are distinguishable because they were criminal cases; but we are here interpreting a statute that applies in both civil and criminal cases, and it would be strange at best to hold that the

same words in the same statute mean different things in different kinds of litigation.

I also conclude that the apparent purpose of section 5 (3) supports a reading that excludes half uncle/half niece marriages from its scope. Section 5 as a whole may be thought of as serving two purposes: it reflects long-held and deeply-rooted values, and it is also concerned with preventing genetic diseases and defects. Section 5 (1) and (2), prohibiting primarily parent-child and brother-sister marriages, are grounded in the almost universal horror with which such marriages are viewed—a horror perhaps attributable to the destructive effect on normal family life that would follow if people viewed their parents, children, brothers and sisters as potential sexual partners. As the Appellate Division explained in *Matter of May* (280 App Div 647, 649 [3d Dept 1952], *aff'd* 305 NY 486 [1953]), these relationships are “so incestuous in degree as to have been regarded with abhorrence since time immemorial.”

There is no comparably strong objection to uncle-niece marriages. Indeed, until 1893 marriages between uncle and niece or aunt and nephew, of the whole or half blood, were lawful in New York (*see* L 1893, ch 601; *Audley*, 196 App Div at 104). And 60 years after the prohibition was enacted we affirmed, in *May*, a judgment recognizing as valid a marriage between a half uncle and half niece that was entered into in Rhode Island and permitted by Rhode Island law. It seems from the Appellate Division’s reasoning in *May* that the result would have been the same even if a full uncle and full niece had been involved. Thus Domestic Relations Law § 5 (3) has not been viewed as expressing strong condemnation of uncle-niece and aunt-nephew relationships.

The second purpose of section 5’s prohibition of incest is to prevent the increased risk of genetic disorders generally believed to result from “inbreeding.” (It may be no coincidence that the broadening of the incest statute in 1893 was roughly contemporaneous with the development of the modern science of genetics in the late nineteenth century.) We are not geneticists, and the record and the briefs in this case do not contain any scientific analysis; but neither party disputes the intuitively correct-seeming conclusion that the genetic risk in a half uncle, half niece relationship is half what it would be if the parties were related by the full blood. Indeed, both parties acknowledged at oral argument that the risk in a half uncle/half niece marriage is comparable to the risk in a marriage of first cousins. First

cousins are allowed to marry in New York, and I conclude that it was not the legislature's purpose to avert the similar, relatively small, genetic risk inherent in relationships like this one.

GRAFFEO, J. (concurring). Under our long-standing principles of statutory construction, I conclude that a marriage between a half uncle and half niece, or a half aunt and half nephew, is permissible in New York based on the structure of Domestic Relations Law § 5. As this Court observed in *Matter of Simms* (26 NY2d 163 [1970]), the legislature included language in subdivision (2) of this statute that prohibits a marriage between a brother and sister of "the half blood," but there is no comparable clause in subdivision (3) voiding marriages between uncles and nieces or aunts and nephews. When the legislature includes a condition in one provision but excludes it from another within the same statute, there arises an "irrefutable inference" that the omission was intentional (*Matter of Raynor v Landmark Chrysler*, 18 NY3d 48, 56 [2011] [internal quotation marks and citation omitted]; see also McKinney's Cons Laws of NY, Book 1, Statutes § 240). Hence, the contrast in the plain language of Domestic Relations Law § 5 (2) and (3) compels the conclusion that marriages between half siblings are outlawed but marriages involving half uncles and half nieces or half aunts and half nephews are permissible.

Nevertheless, I write separately to emphasize that the legislature may see fit to revisit this provision. The record before us does not address the question of genetic ramifications for the children of these unions. Some of my colleagues assert that marriages between half uncles and half nieces, or half aunts and half nephews, are no different than marriages between first cousins. Perhaps there is no genetic basis for precluding such unions, but this Court was not presented with any scientific evidence upon which to draw an informed conclusion on this point.

From a public policy perspective, there may be other important concerns. Such relationships could implicate one of the purposes underlying incest laws, i.e., "maintaining the stability of the family hierarchy by protecting young family members from exploitation by older family members in positions of authority, and by reducing competition and jealous friction among family members" (*Benton v State*, 265 Ga 648, 650, 461 SE2d 202, 205 [1995, Sears, J., concurring]). Similar intrafamilial concerns may arise regardless of whether the uncle or aunt in the marriage is of whole or half blood in relation to the niece

or nephew. The issue of unequal stature in a family or cultural structure may not be implicated in this case but certainly could exist in other contexts, and a number of states have retained statutory prohibitions involving such marriages.* These considerations are more appropriately evaluated in the legislative process.

[22 NE3d 184, 997 NYS2d 676]

In the Matter of MAETREUM OF CYBELE, MAGNA MATER, INC.,
Respondent, v NANCY MCCOY, Appointed Assessor of the
Town of Catskill, et al., Appellants. (And Two Other Re-
lated Proceedings.)

Argued October 21, 2014; decided November 18, 2014

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered November 21, 2013. The Appellate Division (1) reversed, on the law, an order of the Supreme Court, Greene County (Richard Platkin, J.), entered in three proceedings pursuant to RPTL article 7 and CPLR article 78 to review three determinations of the Board of Assessment Review for the Town of Catskill denying petitioner's applications for real property tax exemptions for 2009, 2010 and 2011, which, after a nonjury trial, had dismissed the petitions; (2) granted the petitions; and (3) annulled the determinations.

Matter of Maetrium of Cybele, Magna Mater, Inc. v McCoy, 111 AD3d 1098, affirmed.

HEADNOTE

**Taxation — Exemptions — Not-for-Profit Religious Corporation —
Use of Property Primarily for Religious and Charitable Purposes**

Petitioner, a not-for-profit religious corporation that owned real property, adequately established its entitlement to the tax exemption set forth in RPTL

* See Ala Code § 13A-13-3 (a) (4); Alaska Stat Ann §§ 11.41.450 (a) (3); 25.05.021 (2); Colo Rev Stat Ann § 14-2-110 (1) (c); 750 Ill Comp Stat Ann 5/212 (a) (3); Ky Rev Stat Ann § 530.020 (1); La Civ Code Ann art 90 (A) (2); Minn Stat Ann § 517.03 (1) (3); Mont Code Ann § 40-1-401 (1) (c); NJ Stat Ann § 37:1-1 (a), (b); ND Cent Code Ann § 14-03-03 (3), (4); Or Rev Stat Ann § 106.020 (2); Tex Fam Code Ann § 6.201 (3), (4); Utah Code Ann § 76-7-102 (1) (b) (i); Va Code Ann § 20-38.1 (a) (3); Wash Rev Code § 26.04.020 (1) (b); W Va Code § 48-2-302 (a), (b); Wis Stat Ann § 765.03 (1).

420-a (1) (a) where its proof at trial established that petitioner “exclusively” utilized the property in furtherance of its religious and charitable purposes.

APPEARANCES OF COUNSEL

The Vincelette Law Firm, Albany (*Daniel G. Vincelette* of counsel), for appellants.

Deborah Schneer, Kingston, for respondent.

Kathleen N. Hodgdon, Albany, for Association of Towns of the State of New York, amicus curiae.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs.

Petitioner, a not-for-profit religious corporation that owns real property in the Town of Catskill, commenced proceedings pursuant to CPLR article 78 and RPTL article 7 after respondent Board of Assessment Review for the Town refused petitioner’s 2009, 2010 and 2011 applications for tax-exempt status pursuant to RPTL 420-a. Under that provision, real property owned by a corporation that is “organized or conducted exclusively” for charitable and/or religious purposes, if “used exclusively” for such purposes, “shall be exempt from taxation” (RPTL 420-a [1] [a]). We have defined the term “exclusively” as used in this context “to connote ‘principal’ or ‘primary’ such that purposes and uses merely ‘auxiliary or incidental to the main and exempt purpose and use will not defeat the exemption’ ” (*Matter of Yeshivath Shearith Hapletah v Assessor of Town of Fallsburg*, 79 NY2d 244, 249 [1992], quoting *Matter of Association of Bar of City of N.Y. v Lewisohn*, 34 NY2d 143, 153 [1974]).

After a nonjury trial, where petitioner called four witnesses and respondents called none, the trial court dismissed the petitions on the ground that the religious and charitable uses of the subject property were incidental to petitioner’s primary, nonexempt use of providing affordable cooperative housing. The Appellate Division reversed and granted the petitions, holding that the testimony at trial by petitioner’s witnesses demonstrated that petitioner “uses the property primarily for its religious and charitable purposes” and was therefore entitled to a property tax exemption for the years in question (111 AD3d 1098, 1102 [3d Dept 2013]).

The Appellate Division properly granted the petitions. Petitioner adequately established its entitlement to the RPTL

420-a exemption, as the proof at the trial established that petitioner “exclusively” utilized the property in furtherance of its religious and charitable purposes.

Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, FIGOTT, RIVERA and ABDUS-SALAAM concur.

Order affirmed, with costs, in a memorandum.

[22 NE3d 186, 997 NYS2d 678]

ELISSA MOTELSON, Individually and as Administratrix of the Estate of BRIAN MOTELSON, Deceased, et al., Appellants, v FORD MOTOR COMPANY et al., Respondents. (And Another Action.)

Argued October 22, 2014 decided November 18, 2014

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered December 19, 2012. The Appellate Division (1) reversed, on the law, insofar as reviewed, an amended order of the Supreme Court, Richmond County (Joseph J. Maltese, J.), which had granted that branch of the cross motion of plaintiffs in action No. 1 which was to set aside the jury verdict in defendant’s favor and ordered (a) a new trial on damages to assess the extreme emotional distress damages sustained by plaintiff Gary Motelson unless defendants stipulated to a certain additur award; (b) a new trial on damages on plaintiff Elissa Motelson’s claim for loss of services of Gary Motelson unless defendants stipulated to a certain additur award; and (c) a new trial on damages to assess the extreme emotional distress damages sustained by plaintiff Evan Motelson unless defendants stipulated to a certain additur award; (2) denied that branch of plaintiffs’ cross motion to set aside the verdict in defendants’ favor; (3) modified, on the law, on the facts, and in the exercise of discretion, an order and judgment (one paper) of that court which, upon the amended order, had ordered that plaintiffs should have a new trial on damages only because defendants refused to stipulate to the additur awards; and (4) remitted the matter to Supreme Court for entry of a judgment dismissing the action. The modification consisted of deleting the sixth and seventh decretal paragraphs of the order and judgment, which had directed a new trial on damages only, and

substituting therefor a provision directing the entry of a judgment dismissing the complaint in its entirety. The Appellate Division affirmed the order and judgment as modified.

Steven Motelson was driving a vehicle owned and manufactured by defendants while his son, Gary Motelson, his grandsons Brian Motelson and Evan Motelson, and a third party were passengers in the vehicle. While driving on a highway, the vehicle accelerated, swerved, and rolled over $3\frac{3}{4}$ times. As a result of the accident, Steven and Brian died, and the remaining passengers sustained serious injuries. After trial, the jury found that Evan and Brian were not wearing their seatbelts, the front seatbelt system was not defective, and the speed control cable system was not defective. Those findings were not at issue on appeal. However, the jury found that the roof support system, although reasonably fit for the ordinary purposes for which it was used, was defectively designed, that the manufacturer was negligent in designing, inspecting, and testing it, and that the defect was “a substantial factor in causing Steven Motelson’s injury and death.”

With respect to damages, the jury found that 100% of the injuries of Brian and Evan were attributable to the fact that they were not wearing seatbelts and, therefore, Brian’s estate and Evan were not entitled to recover any damages. The jury awarded no damages to Gary, and no damages to his wife, Elissa Motelson, on her derivative claim.

Supreme Court, upon the cross motion by plaintiffs—Brian’s estate, Evan, Gary, and Elissa—to set aside the jury verdict in favor of defendants, concluded that Gary and Evan suffered psychiatric injury because they were in Steven’s zone of danger when the roof of the vehicle caused Steven’s fatal head injuries and, therefore, that Gary, Elissa, and Evan were entitled to damages.

Motelson v Ford Motor Co., 101 AD3d 957, affirmed.

HEADNOTE

Trial — Verdict — Setting Verdict Aside — Verdict Sheet

In a personal injury action arising out of a motor vehicle accident, Supreme Court erred when it set aside the jury verdict and ordered a new trial on damages as the issue of whether two passengers had suffered and/or would continue to suffer emotional distress as a result of being placed in a zone of danger wherein they witnessed the death of the driver, while asserted in the complaint, was not argued to the jury at trial. Nor was that question addressed in Supreme Court’s charge or submitted to the jury on the verdict sheet, and plaintiffs did not object to either one. Significantly, the questions

on the verdict sheet concerning the roof support system, which the jury found to be defectively designed, asked the jury about the causation of “[the driver’s] injuries and death,” and not about harms to any others.

APPEARANCES OF COUNSEL

Pollack, Pollack, Isaac & De Cicco, LLP, New York City (*Brian J. Isaac* of counsel), and *The Rothenberg Law Firm LLP*, New York City (*Marc J. Rothenberg* of counsel), for appellants.

Carlton Fields Jordan Burt, P.A. (*Wendy F. Lumish*, of the Florida bar, admitted pro hac vice, of counsel), and *Aaronson Rappaport Feinstein & Deutsch, LLP*, New York City (*Elliot J. Zucker* of counsel), for Ford Motor Company, respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs.

The issue of whether plaintiffs Gary Motelson and Evan Motelson had suffered and/or would continue to suffer emotional distress, as a result of being placed in a zone of danger wherein they witnessed the death of Steven Motelson, while asserted in the complaint, was not argued to the jury at trial. Nor was this question addressed in Supreme Court’s charge or submitted to the jury on the verdict sheet. Significantly, the questions on the verdict sheet concerning the roof support system asked the jury about the causation of “Steven Motelson’s injuries and death,” and not about harms to any others. Plaintiffs did not object to the jury charge or verdict sheet. In these circumstances, Supreme Court erred when it set aside the jury verdict and ordered a new trial on damages.

Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, FIGOTT, RIVERA and ABDUS-SALAAM concur.

Order affirmed, with costs, in a memorandum.

ARTHUR BLAKE, Appellant, v STATE OF NEW YORK, Respondent.

Submitted September 22, 2014; decided November 20, 2014

Reported below, 2014 NY Slip Op 79888(U).

Motion, insofar as it seeks leave to appeal from that part of the Appellate Division order that denied reargument of a prior motion, dismissed upon the ground that such part of the Appel-

late Division order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied. Motion for poor person relief dismissed as academic.

In the Matter of ROKHAYA CISSE, Appellant, v CHRISTOPHER GRAHAM, Respondent. (Proceeding No. 1.)

In the Matter of CHRISTOPHER GRAHAM, Respondent, v ROKHAYA CISSE, Appellant. (Proceeding No. 2.)

Submitted September 15, 2014; decided November 20, 2014

Reported below, 120 AD3d 801; 2013 NY Slip Op 85232(U).

Motion for leave to appeal granted. Motion for a stay denied as unnecessary (*see* CPLR 5519 [e]). Motion to vacate stay denied.

In the Matter of MORTON A. COHEN, Appellant, v NEW YORK STATE AND LOCAL EMPLOYEES' RETIREMENT SYSTEM, Respondent. (And Another Proceeding.)

Submitted October 6, 2014; decided November 20, 2014

Reported below, 117 AD3d 1370; 2014 NY Slip Op 81488(U), 2014 NY Slip Op 81479(U).

Motion, insofar as it seeks leave to appeal from the May 2014 Appellate Division judgment, denied; motion, insofar as it seeks leave to appeal from the Appellate Division orders denying reargument or leave to appeal, dismissed upon the ground that such orders do not finally determine the proceedings within the meaning of the Constitution.

COMMONWEALTH OF PENNSYLVANIA PUBLIC SCHOOL EMPLOYEES' RETIREMENT SYSTEM, Together and on Behalf of All Others Similarly Situated, et al., Plaintiffs, and COMMERZBANK AG, Together and on Behalf of All Others Similarly Situated, Appellant, v MORGAN STANLEY & CO., INCORPORATED, et al., Respondents, et al., Defendants.

Decided November 20, 2014

See 772 F3d 111.

Certification of questions by the United States Court of Appeals for the Second Circuit, pursuant to section 500.27 of the Rules of Practice of the Court of Appeals (22 NYCRR 500.27), accepted and the issues presented are to be considered after briefing and argument.

Concur: Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT, RIVERA and ABDUS-SALAAM.

ERIC M. BERMAN, P.C., et al., Respondents, v CITY OF NEW YORK et al., Appellants.

Decided November 20, 2014

See 770 F3d 1002.

Certification of questions by the United States Court of Appeals for the Second Circuit, pursuant to section 500.27 of the Rules of Practice of the Court of Appeals (22 NYCRR 500.27), accepted and the issues presented are to be considered after briefing and argument.

Concur: Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT and ABDUS-SALAAM. Taking no part: Judge RIVERA.

TONY MAFES, Respondent, v CITY OF NEW YORK et al., Defendants, and LINCOLN TUGWELL, Appellant.

Submitted October 14, 2014; decided November 20, 2014

Reported below, 120 AD3d 999.

Motion, insofar as it seeks leave to appeal from those portions of the Appellate Division order which (1) dismissed the appeal from so much of Supreme Court's order as denied reargument and (2) affirmed that portion of Supreme Court's order as denied appellant's motion for an extension of time, dismissed upon the ground that those portions of the order do not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

In the Matter of OKSOON K., Respondent, v YOUNG K., Appellant.

Submitted October 20, 2014; decided November 20, 2014

Reported below, 115 AD3d 486.

Motion for reargument of motion for leave to appeal denied [see 24 NY3d 902 (2014)].

SRN REALTY, LLC, Appellant, v SCARANO ARCHITECT, PLLC, et al., Respondents.

Submitted September 29, 2014; decided November 20, 2014

Reported below, 116 AD3d 693.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of STATE OF NEW YORK, Respondent, v CLAUDE McC., Appellant.

Submitted October 6, 2014; decided November 20, 2014

Reported below, 122 AD3d 65.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of ELAINE D. WARD, Respondent, v CITY OF NEW YORK et al., Appellants.

Submitted October 20, 2014; decided November 20, 2014

Reported below, 111 AD3d 498.

Motion for reargument denied [see 23 NY3d 1046 (2014)].

[22 NE3d 1008, 998 NYS2d 140]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v KENNETH MOORE, Appellant.

Decided October 23, 2014

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Term of the Supreme

Court in the First Judicial Department, entered February 22, 2012. The Appellate Term affirmed a judgment of the Criminal Court of the City of New York, New York County (Roger S. Hayes, J.), which had convicted defendant, upon his plea of guilty, of criminal possession of a controlled substance in the seventh degree.

People v Moore, 34 Misc 3d 151(A), 2012 NY Slip Op 50275(U), reversed.

HEADNOTE

Crimes — Plea of Guilty — Sufficiency of Allocution

In a prosecution for criminal possession of a controlled substance, defendant's guilty plea was vacated and the accusatory instrument dismissed where the People conceded that defendant's plea must be vacated. The plea was entered into after a brief discussion between counsel for both parties and the court. The court did not address defendant, defendant did not speak, and defendant was not advised of any constitutional rights he was waiving. Presuming waiver from a silent record is impermissible, since the record must show, or there must be an allegation and evidence which show, that an accused intelligently and understandingly rejected his or her constitutional rights.

APPEARANCES OF COUNSEL

Seymour W. James, Jr., The Legal Aid Society, Criminal Appeals Bureau, New York City (*Kristina Schwarz* of counsel), for appellant.

Cyrus R. Vance, Jr., District Attorney, New York City (*Yuval Simchi-Levi* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Term should be reversed, defendant's guilty plea vacated and the accusatory instrument dismissed. Defendant was charged with four counts of criminal possession of a controlled substance in the seventh degree (Penal Law § 220.03). At arraignment, there was a brief discussion between defense counsel, the assistant district attorney and the court concerning the terms of a disposition, which then lead to defendant's plea and sentencing on the controlled substance counts. The court did not address defendant and defendant did not speak; nor was defendant advised of any constitutional rights he was waiving. Defendant now claims his constitutional rights were violated because the record fails to establish his plea was knowing, voluntary and intelligent.

In *People v Tyrell*, we held that "[p]resuming waiver from a silent record is impermissible. The record must show, or there

must be an allegation and evidence which show, that an accused intelligently and understandingly rejected his constitutional rights. Anything less is not waiver” (22 NY3d 359, 365-366 [2013] [citation and internal quotation marks omitted]). The People concede that under *Tyrell* defendant’s plea must be vacated and, as defendant has completed his sentence, remittal is unnecessary (*see id.* at 366).

Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT, RIVERA and ABDUS-SALAAM concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed, plea vacated and the accusatory instrument dismissed, in a memorandum.

[22 NE3d 1009, 998 NYS2d 141]

In the Matter of CATHERINE A. GORMAN, Appellant, v KATHLEEN M. RICE, Respondent, et al., Respondent.

Argued October 16, 2014; decided November 18, 2014

SUMMARY

APPEAL, on constitutional grounds, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered May 22, 2013. The Appellate Division (1) reversed, on the law, a judgment (denominated order) of the Supreme Court, Nassau County (F. Dana Winslow, J.; op 29 Misc 3d 610 [2010]), entered in a proceeding pursuant to CPLR article 78, which had granted the petition to the extent of dismissing the pending trial against petitioner (docket No. 2006NA016493) and barring any prosecution of petitioner on the charges enumerated in docket No. 2006NA016493 as constituting a double jeopardy violation; (2) denied the petition; (3) dismissed the proceeding on the merits; (4) vacated an order of that court (op 2012 NY Slip Op 33700[U] [2012]) which had granted reargument, and upon reargument, adhered to the original determination; and (5) dismissed, as academic, an appeal from the order made upon reargument.

Matter of Gorman v Rice, 106 AD3d 1000, affirmed.

HEADNOTE

Crimes — Double Jeopardy — Defendant’s Consent to Mistrial

The retrial of petitioner (defendant), who had consented to a mistrial in her prior prosecution after the trial court rescinded its initial declaration of a mis-

trial, was not barred on double jeopardy grounds. When the trial judge said that he was going to declare a mistrial on consent after defense counsel announced his intention to file a complaint against the judge, defense counsel objected that he was not consenting to a mistrial, and the judge granted a recess for counsel to discuss with defendant how they wished to proceed. After the recess, counsel advised the judge that they had decided “to go with the mistrial.” Until the jury is discharged, a court may rescind its previous declaration of mistrial, and while the judge never expressly said “I rescind my order declaring a mistrial,” no particular language has been required to be used to retract a prior order. The record made clear that the trial judge was leaving the mistrial decision up to defendant, and because defendant decided to “go with the mistrial,” thus consenting to it, her double jeopardy claim failed.

APPEARANCES OF COUNSEL

Law Office of Harry H. Kutner, Jr., Mineola (*Harry H. Kutner, Jr.*, of counsel), for appellant.

Kathleen M. Rice, District Attorney, Mineola (*Barbara Kornblau, Tammy J. Smiley and Yael V. Levy* of counsel), respondent pro se.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, without costs.

During the late afternoon of July 8, 2006, defendant Catherine A. Gorman was driving a car on the Meadowbrook Parkway with two 10-year-old girls as her passengers. As defendant attempted to exit the parkway, her car veered out of control and flew in front of another vehicle (one of two or three vehicles driven by members of a family on an outing to a local fair) as she shot over the exit ramp and plowed through a wooded area, ultimately coming to rest on a fence that separated the wooded area from a parking lot. The motorists in the caravan stopped to help; one of these witnesses detected the odor of alcohol emanating from the front seat of defendant’s car; another noticed that defendant smelled of alcohol and that her eyes were watery and bloodshot. Defendant said that she was all right and asked that the police not be notified. When defendant learned that someone in the family party had already called the police, she began walking away from the accident scene, along the side of the parkway, with the two young girls in tow.

The police intercepted defendant and the two children at an exit ramp perhaps one quarter of a mile distant from the accident scene. Based on defendant’s appearance, slurred speech, answers to questions, the odor of alcohol and her performance

on standard field sobriety tests, the police concluded that she was intoxicated. Defendant was arrested and brought to the police station, where a breathalyzer test showed a blood alcohol content (BAC) of 0.25%. Defendant was charged with violating Vehicle and Traffic Law §§ 1192 (2) (per se driving while intoxicated [BAC of 0.08% or more]), (3) (driving while intoxicated); 1128 (a) (moving from lane unsafely); and Penal Law § 260.10 (endangering the welfare of a child) (two counts).

During defendant's second jury trial in District Court in October 2009 (the first ended in a mistrial), defense counsel announced, outside the presence of the jury, that he intended to file a complaint against the judge for alleged pro-prosecution rulings. The judge stated, "I'm declaring a mistrial based on the threats of counsel to file a complaint against me. I'll be back in five minutes." When the judge returned, he noted that "[b]efore we broke, I declared a mistrial. I reviewed the record, and it is clear that defense counsel said that my conduct verged on needing a complaint being filed. That being said, I am unable to preside over this trial." The judge then remarked to defense counsel, "I'm assuming . . . that you agree that . . . I should not be able to preside over this trial," to which defense counsel responded, "Yes, sir." The court continued that "on consent, I'm going to declare a mistrial." Defense counsel then objected that he was "not consenting to a mistrial."

Further discussion ensued among the court and the parties, and the prosecutor suggested that the trial be adjourned to the following week to give everyone "a chance to cool down" so that "[m]aybe [they could] continue the trial." The judge responded, "Well, I think . . . [it] is really up to the defendant and [defense counsel]." The colloquy continued as follows:

"THE COURT: I just want it to be clear on the record. When I came back, I asked defense counsel that based on his comments if it was his opinion that I would not be able to preside over this trial, and your response was yes.

"Is that your opinion?

"[DEFENSE COUNSEL]: (No audible response).

"THE COURT: I'm not trying to put you on the spot.

"[DEFENSE COUNSEL]: I have to be.

"THE COURT: You were the one who told me that

you wanted—you were going to file a complaint against me, and you're unhappy with the way I am presiding over the trial.

“If you believe that my conduct has been so bad it warrants a complaint to the judiciary committee, then so be it, then you can do it, and I'll recuse myself.

“But I also don't want to be in a position where I'm going to preside over this trial, and then when it's over, you go to the judiciary committee anyway.

“[DEFENSE COUNSEL]: I have never done that in 36 years, 35 and a half years.

“THE COURT: So I think what I'm going to do is I'm going to take five minutes, and you can discuss with your client what you want to do. If you and your client decide you want me to preside over this trial, then I'll reconsider it.

“[DEFENSE COUNSEL]: Okay, Judge. Thank you. Thank you for the opportunity.”

After this recess, defense counsel stated that upon speaking with his client and her family and “weighing all the options,” they had decided “regrettably . . . to go with the mistrial.” The judge then declared a mistrial “at the request of . . . defendant,” discharged the jury and recused himself. A month later, defendant moved to dismiss the accusatory instrument, principally on double jeopardy grounds. On April 19, 2010, the District Court Judge assigned the motion rejected defendant's double jeopardy claim, prompting her to bring this CPLR article 78 proceeding to prohibit a retrial.

On August 16, 2010, Supreme Court granted defendant's CPLR article 78 petition and barred “any prosecution of [defendant] on the [specified] charges . . . as constituting a violation of the double jeopardy protection” (29 Misc 3d 610, 618 [Nassau County 2010]). The People timely moved for reargument. After several adjournments upon the request of the parties and oral argument, Supreme Court, by decision dated February 23, 2012, granted reargument and adhered to its original decision (2012 NY Slip Op 33700[U] [2012]). The People appealed, and on May 22, 2013, the Appellate Division unanimously reversed, denied the petition and dismissed the proceeding (106 AD3d 1000 [2d Dept 2013]).

The court held that “Supreme Court erred in determining that the District Court did not retain the discretion to rescind its previous declaration of a mistrial prior to the discharge of the jury” (*id.* at 1001). And in this case, “the District Court’s initial declaration of a mistrial, made without . . . [defendant’s] consent, was rescinded and, thereafter, a mistrial was declared upon . . . [defendant’s] consent” (*id.*). After the same panel denied defendant’s motion for reargument and leave to appeal to us (2013 NY Slip Op 79345[U] [2013]), she appealed as of right pursuant to CPLR 5601 (b) (1) (substantial constitutional question directly involved), or, alternatively, sought leave to appeal. On October 22, 2013, we denied the motion for leave to appeal as unnecessary, and granted defendant a stay (22 NY3d 948 [2013]). We now affirm for substantially the reasons stated by the Appellate Division.

Until the jury is discharged, a court may rescind its previous declaration of mistrial (*see People v Dawkins*, 82 NY2d 226 [1993]). Defendant argues that in this case the trial judge never formally rescinded his initial mistrial ruling, and so whether or not she indicated her consent after that ruling is irrelevant. Certainly, the judge never expressly said, “I rescind my order declaring a mistrial.” But we have never required any particular language to be used to retract a prior order. Here, the record makes clear that the trial judge was leaving the mistrial decision up to defendant. Because she decided to “go with the mistrial,” and thus consented to it, her double jeopardy claim fails. Indeed, if defendant were correct that the judge never rescinded his initial mistrial order, there would have been no need for him to afford defense counsel and defendant time to consult about how they wanted to proceed. Concomitantly, immediately prior to the recess to allow for this consultation, the judge explicitly declared that it was “up to the defendant and [defense counsel]” to decide whether or not they wanted to continue with the trial.

Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, FIGOTT, RIVERA and ABDUS-SALAAM concur.

Order affirmed, without costs, in a memorandum.

In the Matter of JOSE ALMONTE, Appellant, v JOSEPH P. SMITH,
as Superintendent of Shawangunk Correctional Facility, Re-
spondent.

Submitted October 20, 2014; decided November 24, 2014

Reported below, 117 AD3d 1301.

Motion for leave to appeal dismissed as untimely (*see* CPLR
5513 [b]).

ARCHSTONE, Formerly Known as ARCHSTONE-SMITH OPERATING
TRUST, et al., Appellants, v TOCCI BUILDING CORPORATION
OF NEW JERSEY, INC., et al., Defendants, and LIBERTY MU-
TUAL INSURANCE COMPANY, Respondent. (And Third-Party
Actions.)

Submitted October 20, 2014; decided November 24, 2014

Reported below, 119 AD3d 497.

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the action within the meaning of the Constitution.

In the Matter of ECHO WESTLEY DIXON, Appellant, v BRIAN FI-
SCHER, as Commissioner of Corrections and Community
Supervision, Respondent.

Submitted October 20, 2014; decided November 24, 2014

Reported below, 120 AD3d 1511.

On the Court's own motion, appeal dismissed, without costs,
upon the ground that no substantial constitutional question is
directly involved. Motion for leave to appeal denied.

In the Matter of ROY DEN HOLLANDER, Appellant, v CITY OF
NEW YORK COMMISSION ON HUMAN RIGHTS, Respondent.

Submitted October 6, 2014; decided November 24, 2014

Reported below, 118 AD3d 418.

Motion to dismiss appeal, treated as a motion for reargument
of appellant's motion for leave to appeal, granted and, upon re-
argument, motion for leave to appeal denied [*see* 24 NY3d 903
(2014)].

In the Matter of CONSTANTINE JACKSON, Appellant, v ANTHONY ANNUCCI, Acting Commissioner, New York State Department of Corrections and Community Supervision, Respondent.

Submitted October 20, 2014; decided November 24, 2014

Reported below, 119 AD3d 1382.

Motion for reargument of motion for leave to appeal denied [see 24 NY3d 903 (2014)].

KRISTIN MANGILIT-PRADLIK, Plaintiff, and ANTHONY J. PRADLIK, Appellant, v VALVOLINE INSTANT OIL CHANGE GE6604-WHITE PLAINS et al., Respondents.

Submitted October 27, 2014; decided November 24, 2014

Reported below, 120 AD3d 774.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for a stay dismissed as academic.

KHANH T. NGUYEN, Appellant, v NEMET MOTORS, Respondent.

Submitted October 20, 2014; decided November 24, 2014

Reported below, 2014 NY Slip Op 70098(U).

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain the motion (see NY Const, art VI, § 3 [b]; CPLR 5602).

In the Matter of RALPH OYAGUE, Appellant, v SULLIVAN CORRECTIONAL FACILITY, Respondent.

Submitted October 20, 2014; decided November 24, 2014

Reported below, 117 AD3d 1299.

Motion for reargument of motion for leave to appeal denied
[see 24 NY3d 902 (2014)].

THE PEOPLE OF THE STATE OF NEW YORK ex rel. DEMETRIO LIFRIE-
RI, Appellant, v WILLIAM A. LEE, Respondent.

Submitted October 27, 2014; decided November 24, 2014

Reported below, 116 AD3d 720; 2014 NY Slip Op 76411(U).

Motion for reargument of motion for leave to appeal denied
[see 24 NY3d 952 (2014)].

In the Matter of the Claim of DORA I. RUANO, Respondent. LEGAL
INTERPRETING SERVICES, INC., Appellant; COMMISSIONER OF
LABOR, Respondent.

Submitted October 14, 2014; decided November 24, 2014

Reported below, 118 AD3d 1088.

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the proceeding within the meaning of the Constitution.

In the Matter of FRANK RUSSELL, Appellant, v BRIAN FISCHER,
Commissioner, New York State Department of Corrections
and Community Supervision, Respondent.

Submitted October 20, 2014; decided November 24, 2014

Reported below, 115 AD3d 1224.

Motion for reargument of motion for leave to appeal denied
[see 23 NY3d 909 (2014)].

In the Matter of MICHELE M. SIMMS-PARRIS (Admitted as
MICHELE MARIE SIMMS-PARRIS), a Disbarred Attorney, Ap-
pellant. GRIEVANCE COMMITTEE FOR THE NINTH JUDICIAL
DISTRICT, Respondent.

Submitted October 27, 2014; decided November 24, 2014

Reported below, 2014 NY Slip Op 69498(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of the Claim of RUBEN ABREU, Appellant. E. ARMATA, INC., Respondent; COMMISSIONER OF LABOR, Respondent.

Submitted November 3, 2014; decided November 25, 2014

Reported below, 120 AD3d 1501.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

REBECCA GEFFNER, Appellant, v MERCY MEDICAL CENTER et al., Respondents.

Submitted October 6, 2014; decided November 25, 2014

Reported below, 2014 NY Slip Op 79898(U); 2014 NY Slip Op 68392(U).

Motion, insofar as it seeks leave to appeal from the August 2014 Appellate Division order, dismissed upon the ground that such order does not finally determine the action within the meaning of the Constitution; motion, insofar as it seeks leave to appeal from the April 2014 Appellate Division order, as against respondents Mercy Medical Center, Roy A. Rubenstein, Eric A. Shoenfeld, and Harte Placements, Inc., doing business as Nassau-Johrens Registry Agency, dismissed upon the ground that as to said parties such order does not finally determine the action within the meaning of the Constitution; motion, insofar as it seeks leave to appeal from the April 2014 Appellate Division order, as against the remaining respondents, denied.

In the Matter of KEVIN GRIFFIN, Appellant, v THOMAS P. DINAPOLI, as State Comptroller, et al., Respondents.

Submitted October 27, 2014; decided November 25, 2014

Reported below, 117 AD3d 1355.

Motion for reargument of motion or leave to appeal denied [see 24 NY3d 903 (2014)].

In the Matter of JAMES PINE, Appellant, v BRIAN FISCHER, as
Commissioner of Corrections and Community Supervision,
Respondent.

Submitted October 20, 2014; decided November 25, 2014

Reported below, 118 AD3d 1196.

Motion for reargument of motion for leave to appeal denied
[see 24 NY3d 904 (2014)].

SCAROLA ELLIS LLP, Appellant, v ELAN PADEH, Respondent.

Submitted October 6, 2014; decided November 25, 2014

Reported below, 116 AD3d 609; 2014 NY Slip Op 82032(U).

Motion, insofar as it seeks leave to appeal from the Appellate
Division order denying reargument or leave to appeal, dismissed
upon the ground that such order does not finally determine the
action within the meaning of the Constitution; motion for leave
to appeal otherwise denied.

CARLAYNE SIMS, Appellant, v UNITED STATES OF AMERICA GOV-
ERNING BODY et al., Respondents.

Submitted November 3, 2014; decided November 25, 2014

Reported below, 2014 NY Slip Op 83742(U).

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the action within the meaning of the Constitution. Motion for
poor person relief dismissed as academic.

US BANK, N.A., Respondent, v CLEMENT MORRISON, Also Known
as CLEMENT A. MORRISON, et al., Appellants, et al., Defend-
ants.

Submitted October 6, 2014; decided November 25, 2014

Reported below, 120 AD3d 1223.

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the action within the meaning of the Constitution.
